CONSTITUTIONAL LAW OF INDIA

Constitutional Law OF India, 1950

Total Articles original – 395 now 448

Total schedule – 8 – now 12

Total parts – 22 and now 25

Enactment date – 26 November 1949

Enforcement date – 26 January 1950

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CONSTITUTIONAL LAW OF INDIA

NATURE, SAILENT FEATURES OF THE CONSTITUTION

- **Introduction**
- **Organs of the Government**
- **Classification of constitutions**
- **Constitution may be Written or Unwritten**
- **Constitutional Law**
- **Forms of government [1]**
- **Parliamentary System of Government**
- **Presidential System of Government**

Introduction

A Constitution may be briefly defined as "a document having a special legal sanctity which sets out the framework and the principal functions of the organs of the Government of a State and declares the principles governing the operation of those organs". It is an essential document to be enacted by any society, intending to organize itself politically[2]. It is the basic or fundamental document of a society or a country and contains the basic, the fundamental, the first law of the country. All the laws in the country are enacted under this document and within this document which is known as the **Grundnorm of the country[3].**

[1] Narender *kumar "Introduction to the Constitutional law of India" p.3*

[2] Narender *kumar "Introduction to the Constitutional law of India" p.1.*

[3] I.R. Coelho v. State of Tamil Nadu AIR 2007 SC 861.

1.What Is Constitution Anyway?

I) In General-

The Constitution is the supreme law of the land. All other laws have to conform to the Constitution. The constitution contains laws concerning the government and its relations with the people.

A constitution is concerned with 2 main aspects:-

a) The relation between the different levels of government and

b) Between the government and the citizens.



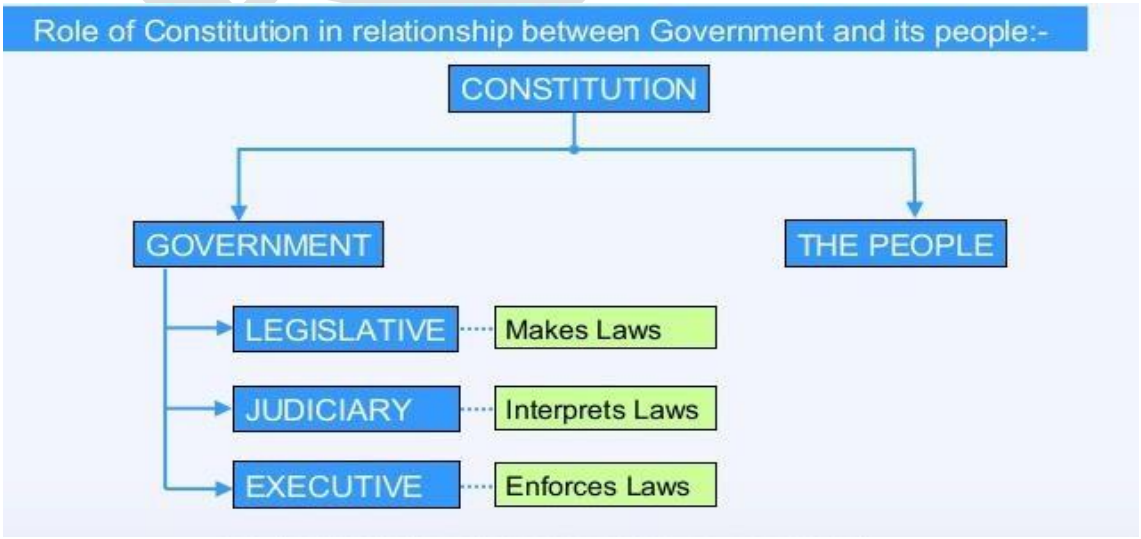
Organs of the Government

Traditionally there are following three main or principal organs of the Government of a country-

I. Legislature, whose function is to make laws, amend them or repeal them;

II. Executive, which implements, executes or administers laws; and

III. Judiciary, whose function is to interpret and enforce laws and to administer justice,



Classification of constitutions

Constitution may be Written or Unwritten

A written Constitution is one which is written down in the form of a document. It is the formal, a single source of all Constitutional Law of the country. As a consequence, it lays down a limited or a controlled Government[4] in the sense that every organ of the Government must act in accordance with the Constitution and within the limitations prescribed by it. The Courts are regarded as the interpreters as well as the guardian of the Constitution.[5]

Constitutional Law

"Constitutional Law" is defined as "the rules which regulate the structure of the organs of the Government of a State, their relationship to each other and determine their principal functions".[9] these rules consist of both 'legal' as well as non-legal rules.[6] It is the basic law relating to the Government of the country constitutional Law and All other Laws

Forms of government [7]

Parliamentary System of Government

The essential characteristics of a Parliamentary System of Government are that under such a system-

I. The Head of the State is merely a constitutional Head.
II. The Council of Ministers, vested with real and effective powers, is made answerable to the Legislature.
III. The Council of Ministers, which is the real Executive, consists of members of the Legislature, belonging to the party in power, having support of the majority in the Legislature. The Council of Ministers is a part of the Legislature and is responsible to it.
IV. The Prime Minister, who is the head of the Council of Ministers, occupies a dominant position, having absolute discretion in appointing and dismissing the Ministers and

[4] I.R. Coelho v. State of Tamil Nadu AIR 2007 SC 861.

[5] Narender *kumar "Introduction to the Constitutional law of India" p.1.*

[6] Such rules are known as Conventions, usage or pra ctices of the constitution.

[7] Narender *kumar "Introduction to the Constitutional law of India" p.3*

allocating the government business among them. A Minister, in the Council of Ministers, therefore, holds his portfolio during the pleasure of the Prime Minister.

V. Since the Council of Ministers is answerable to the Legislature, its tenure is dependent on the will of the Legislature. The Ministers are collectively responsible to the Legislature and on the defeat of the Government on a policy matter in the Legislature (if the Legislature is a bi-cameral, in the popular House of the Legislature) leads to the resignation of the whole Council of Ministers.

VI. Since the Ministers are collectively responsible to the Legislature, they stand and fall together. If there is a disagreement among the Ministers, the dissentient Minister or Ministers must either keep silent or resign. It, therefore, requires the Ministers to function as a team.



Presidential System of Government

The chief characteristics of a Presidential System, as adopted under the Constitution of the United States of America, are-

- Under the Presidential System of Government, the President, the Chief Executive, is the real Executive Head of the Government. He is the de jure and de facto Head of the entire administration and not a nominal head as in a Parliamentary System.
- The President enjoyed full discretion in selecting the members of his Cabinet. The Ministers hold office during the pleasure of the President and are responsible to the President alone for their "functioning. They are neither collectively nor individually responsible to the Legislature.

The Presidential system enables the President to have a Cabinet of outstanding competence, ability and integrity and mature experience since the choice is not restricted to the Legislature.

- Under the Presidential System, the President cannot be removed by a vote of no-confidence in Parliament.
- Under such a system, the Legislature cannot dictate to the President.
- The President, under such a system, is not responsible as far initiation of legislation. It is the President who frames the policy and proposals for legislation.

Comparison of Parliamentary and Presidential Systems

Differences	Presidential	Parliamentary
Structure of the executive	Single-headed	Double-headed
Source of the executive	People	Parliament
Responsibility of the executive to parliament	No	Yes
Cancel of parliament by the executive	No	Yes
Same person be part of legislative and executive	Not possible	Possible
Take part in the works of parliament by executive	Not possible	Possible

Nature of the Constitution of India

The Constitution of a country, more often than not, is the outcome of the political climate in the country. It is an instrument devised to fit the Government of a people in their given historical, political, geographical, economic and sociological environments.

A federal Constitution provides for a division of decision-making powers between the two Governments, neither of which, ordinarily dictates the decision of the other. "It is the desire for union without unity", **according to Dicey**, "which is a condition absolutely essential to the founding of a federal system." It was this force which was at work in India when the present constitutional framework was created for the country. The Framers, thus, opted for the adoption

of a federal framework and gave to India a federal Constitution, though this fact is disputed by many a political scientists.

Our constitution?

A kind of mix

Has both the features of federal and unitary

=> 'Quasi – Federal Constitution'

Provisions of the Constitution of India which affects the Federal concept

The following provisions of the Constitution of India are referred to by the constitutional pandits while criticizing the nature of the Constitution, being a **Federation-**

1) ***Power*** of the Union ***Parliament***, under ***Article 3,*** to *alter the names, areas and boundaries* of the existing States;
2) Provision for ***single citizenship*** under ***Article 9***;
3) *Position of the Governor*, as ***an agent*** of the Central Government;
4) *Discretion* vested with the Governor under ***Article 174 and Article 200***;
5) Power of the Parliament to make laws on subjects mentioned in the State List under Articles ***249, 250 and 253;***
6) The rule of repugnancy operating in favour of the Central Law under Article 254;
7) Powers of the central Government, in respect of emergency, under Articles 352 to 360.

In view of the above stated provisions, *Dr. K.C. Wheare* has coined the expression *"quasi-federal'* for Indian Constitution. In the opinion of *Dr. Ivor Jennings*, *it is a unitary' "Constitution with subsidiary' federal features."* Prof. Alexandro Wicz holds it "a unitary' Constitution with vertically divided sovereignty."

Federal system

- The division of power between the state government and and the centre or union government



Division of power in 3 lists

UNION LIST	• Consist of issues of national concern. Ex : Currency, Defence • Only union govt can make laws.
STATE LIST	• Consist of issues of state concern. Ex : Housing, transport • Only state govt can make laws
CONCURRENT LIST	• Consist of issues common in both the list. Ex : Education • Both the govt can make laws

Unitary Features of the Indian Constitution

- ***Single Citizenship:***

- ***A Strong Centre:***
- ***Single Constitution for Union and States:***
- ***Centre Can Change Name and Boundaries of States:***
- ***Single Unified Judiciary:***
- ***Unitary in Emergencies:***
- ***Common All-India Services:***
- ***Inequality of Representation in the Council of States:***
- ***Appointment of Governor by President:***
- ***Appointment of the High Court Judges by the President:***
- *The* ***Office of the Comptroller and Auditor-General:***
- ***Centralized Electoral Machinery:***
- ***Flexible Constitution:***
- ***Special Powers of Council of State over State List:***
- ***Control over State Laws:***
- ***Financial Dependence of States:***

The framers of the Constitution have modified the true nature of Indian federalism by incorporating certain non-federal features in the Constitution as well. This has lent support to the contention that the Indian Constitution is federal in form but unitary in spirit.

Single Citizenship:

The Indian federation is a dual polity with a single citizenship for the whole of India. There is no State citizenship. Every Indian has the same rights of citizenship, no matter in which State he resides.

A Strong Centre:

The result of the distribution of powers between the federation and the units is that the State Governments are governments of limited and enumerated powers. Though the Union Government is also a government of limited and enumerated powers, it has, under certain circumstances, power even over the State Governments and the residuary power over the whole territory.

Single Constitution for Union and States:

Indian Constitution embodies not only the Constitution of the Union but also those of the States. Furthermore, the States of the Indian Union have a uniform Constitution. The amending process both for the Constitution of the Union and the States is also the same.

Parliament Can Change Name and Boundaries of States:

In India, under *Article 3 of Indian Constitution* the Parliament has a right to change the boundaries of the States and to carve out one State out of the other. In fact, this has been done in India, not only once but several times. In the fifties, Andhra Pradesh was carved out of Madras State. Telangana is recent example. Shortly thereafter, the States Reorganization Commission was established and a chain of events unfolded. There is perhaps no State whose boundaries have not been changed at one stage or another. The right of the Centre to change the boundaries of the States is against the federal set-up.

Single Unified Judiciary:

In India, the Supreme Court and the High Court's form a single integrated judicial system. They have jurisdiction over cases arising under the same laws, constitutional, civil and criminal. The civil and the criminal laws are codified and are applicable to the entire country. To ensure their uniformity, they are placed in the Concurrent List.

Judiciary:

Main function

1. Educate the laws made by the legislature,
2. To interpret the laws
3. Declare any such law null or void if it violates the provisions of the constitution
4. To render justice in the country

Unitary in Emergencies:

The Indian Constitution is designed to work as a federal government in normal times, but as a unitary government in times of emergency. Under the Constitution, the President of the Republic has been given emergency powers. An emergency can arise both in the political and financial fields.

Common All-India Services:

The Constitution has certain special provisions to ensure the uniformity of the administrative system and to maintain minimum common administrative standards without impairing the federal principle. These include the creation of All-India Services, such as the Indian Administrative and Police Services and placing the members of these services in key administrative positions in the States.

Inequality of Representation in the Council of States:

There is bicameralism in India but in the Council of States, States have not been given equal representation. Here population system has been followed and bigger States have been given greater representation than the smaller ones.

Appointment of Governor by President:

The Heads of the State the Governor are appointed by the President. They hold office during his pleasure. This enables the Union Government to exercise control over the State administration.

Appointment of the High Court Judges by the President:

Appointments to the High Courts are made by the President, and the Judges of the High Courts can be transferred by the President from one High Court to another.

The Office of the Comptroller and Auditor-General:

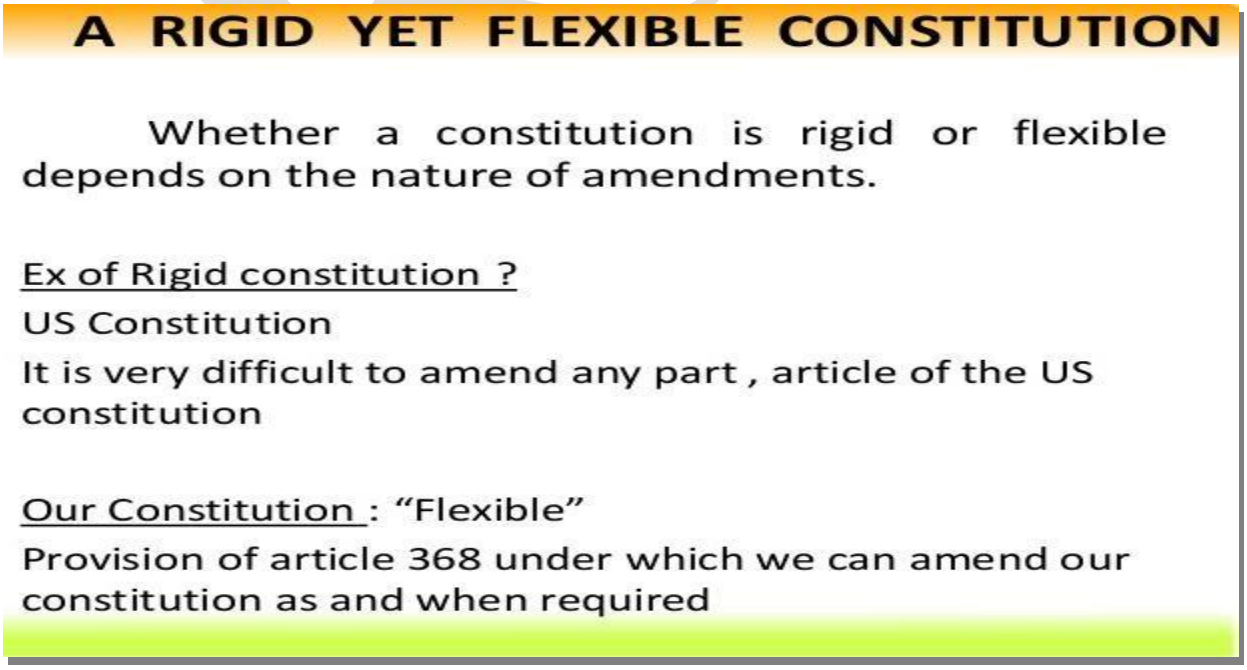
The Comptroller and Auditor-General of India has an organization managed by the officers of the Indian Audit and Account Services, a central service, who are concerned not only with the accounts and auditing of the Union Government but also those of the States.

Centralized Electoral Machinery:

The Election Commission, a body appointed by the President, is in charge of conducting elections not only to Parliament and to other elective offices of the Union, but also to those of the State Legislature.

Flexible Constitution:

The Indian Constitution is not very rigid. Many parts of the Constitution can be easily amended.



Special Powers of Council of State over State List:

The Parliament is also authorized by the Constitution to make laws on any subject mentioned in the State List, if the Council of States passes a resolution by a two-thirds majority declaring a particular subject or subjects to be of national importance. Similarly, Parliament can pass laws on the items of State List, if it is deemed essential by the Government of India to honour an international obligation. In short, in India the Centre can encroach on the field reserved for the States as and when it feels neces-sary.

Control over State Laws:

Certain laws passed by the State Legislature cannot come into operation unless they have been reserved for the approval of the President of India. Thus, all the laws concerning the acquisition of property, all laws on Concurrent List which are contrary to the laws passed by the Parliament; and the laws concerning the sales-tax on essential commodi-ties, etc. need the approval of the Central Government. Moreover, the Governor of a State reserves the right to reserve any Bill passed by the State Legislature for the consideration of the President. The President may accord his approval to such a bill or may withhold his assent.

Financial Dependence of States:

In a federation, as far as possible, States should be finan-cially self-sufficient so that these enjoy maximum autonomy. But in India, the States depend on the Centre for all development. They have much less sources of income but many more needs of expenditure. This financial dependency has very much hindered the growth of States on federal lines.

The government of the country, till the India Act of 1935 was passed, was a centralised government and the process that was adopted under the India Act of 1935 was that of "creating autonomous units and combining them into a federation by one and the same Act". The process for the establishment of a federation in India, therefore, has to be described as one of movement from the union to the units rather than from the units to the union.

The Act of 1935, however, cannot be described as having given to India a truly federal constitu-tion. It has far too many restrictions imposed upon the provincial governments. When the British left India in 1947, they withdrew these powers and transferred their sovereign rights to the people of India to exercise them in accordance with a Constitution of their own choice.

SALIENT FEATURES OF THE INDIAN CONSTITUTION

- ***Most Exhaustive Constitution***
- ***Our Constitution starts with a Preamble***
- ***Our constitution has been drawn from different sources***
- ***Fundamental rights and duties.***
- ***Directive principles of state policy***
- ***Rigidity vs. Flexibility***
- ***Sovereignty of the Country***
- ***Democratic state***
- ***Republic***
- ***Socialist State***
- ***Secular***
- ***Parliamentary Form of Government***
- ***A blend of Federal and Unitary***
- ***Integrated Judiciary***
- ***Universal Adult Franchise***

Most Exhaustive Constitution:

Originally our constitution contained ***395 articles*** divided in ***22 parts and 8 schedules***. The numbering still remains the same but as and when the constitution amended, new articles were added with suffix A, B, C etc. For example, when our constitution was amended for adjusting the

Right to Education, a new Article 21A was inserted below Article 21. So, today our constitution has the following:

- *25 Parts*
- *12 Schedules*
- *448 Articles Till the date , Constitution of India has been amended for 119 times.*

the above figures make our constitution the most comprehensive constitution in the world. Here we should also note that the British have no written constitution ***and Constitution of USA had originally only 7 articles.*** This 7 article Constitution of United States has been amended for 27 times up till now. The first 10 amendments are called Bill of Rights. ***The constitution of Canada had 147 articles***; ***Constitution of Australia had 128 articles***, when they were enacted.

Our Constitution starts with a Preamble:

Indian Constitution has a preamble which gives an insight into the Philosophy of the Constitution. Please note that Preamble is a Part of Indian Constitution. Initially the Preamble was not considered a part of the Constitution and its amendment was not accepted**. In *kesavanand Bharti v/s state of Kerala* 1973**[8] case the Supreme Court ruled that it is a part of the constitution and can be amended.

Our constitution has been drawn from different sources:

Our constitution has borrowed many things from many constitutions. It was called plagiarism by many. But, here we need to look into what *Dr. BR Ambedkar*, The chairman of the Drafting Committee of the Constitutional Assembly said in this context: "As to the accusation that the Draft Constitution has [re]produced a good part of the provisions of the Government of India Act, 1935,"I make no apologies. There is nothing to be ashamed of in borrowing. It involves no plagiarism. Nobody holds any patent rights in the fundamental ideas of a Constitution " Yes, our constitution has borrowed good things from the Government of India Act 1935 and other

[8] Retrived from http://indiankanoon.org/doc/257876/.

contemporary constitutions of the world. The best provisions were selected from different sources and we should not be ashamed of that.



Fundamental rights and duties.

The Constitution of India guarantees six fundamental rights to every citizen. These are:

- *Right to Equality.*
- *Right to Freedom.*
- *Right against Exploitation.*
- *Right to Freedom of Religion.*
- *Cultural and Educational Rights.*
- *Right to Constitutional Remedies.*

By ***42nd Amendment*** of the Constitution, ***ten Fundamental Duties*** of citizens have also been added.

Directive principles of state policy:

The Directive Principles of State Policy are listed in Part Four of the Constitution. The framers of our constitution took the idea of having such principles from the Irish Constitution. These principles are instructions given by the Constitution to government. All the governments-Central, State and Local-are expected to frame their policies in accordance with these principles. The aim

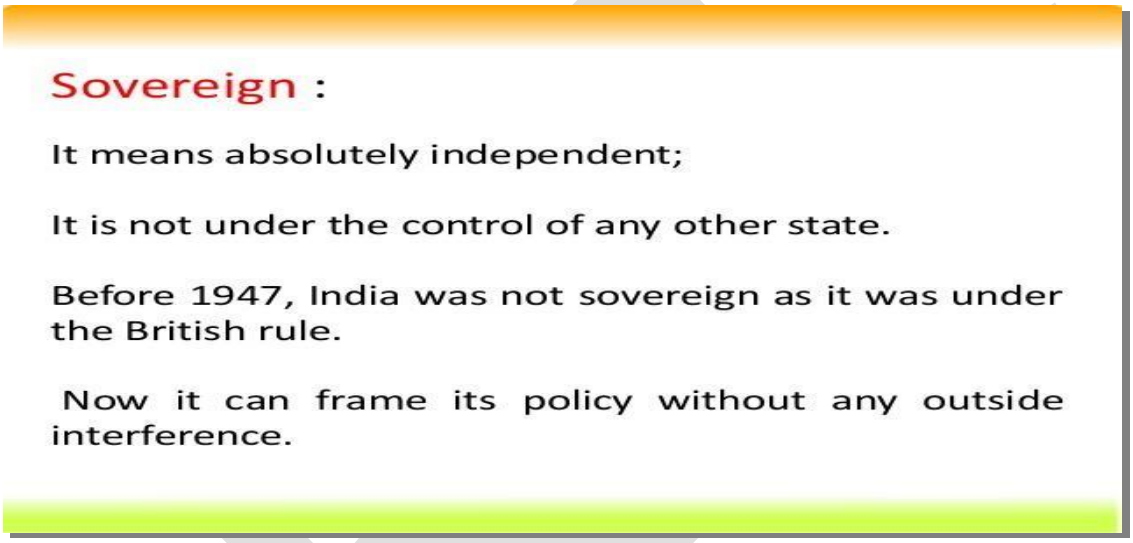
of these principles is to establish a welfare state in India. They, however, are not binding on the government-they are mere guidelines

Rigidity vs. Flexibility:

Our constitution is rigid as well as flexible. Here you must note that in India and also many other countries, making Law is quite flexible and easy in comparison to amending a law. The amendment of the constitution is one of the most difficult laws making process in India.

Sovereignty of the Country:

The Preamble of the constitution declares that India is a sovereign state. It manages its internal and external affairs freely without any external forces.



Democratic state:

India is a democratic country where governing power is derived from the people by means of elected representatives of the people. The political authority is responsible to the people. This democracy is based upon the socioeconomic justice and equality of the opportunity.

Democratic :

Means, the power of the government is vested in the hands of the people.

People exercise this power through their elected representatives who, in turn, are responsible to them.

All the citizens enjoy equal political rights.

Republic:

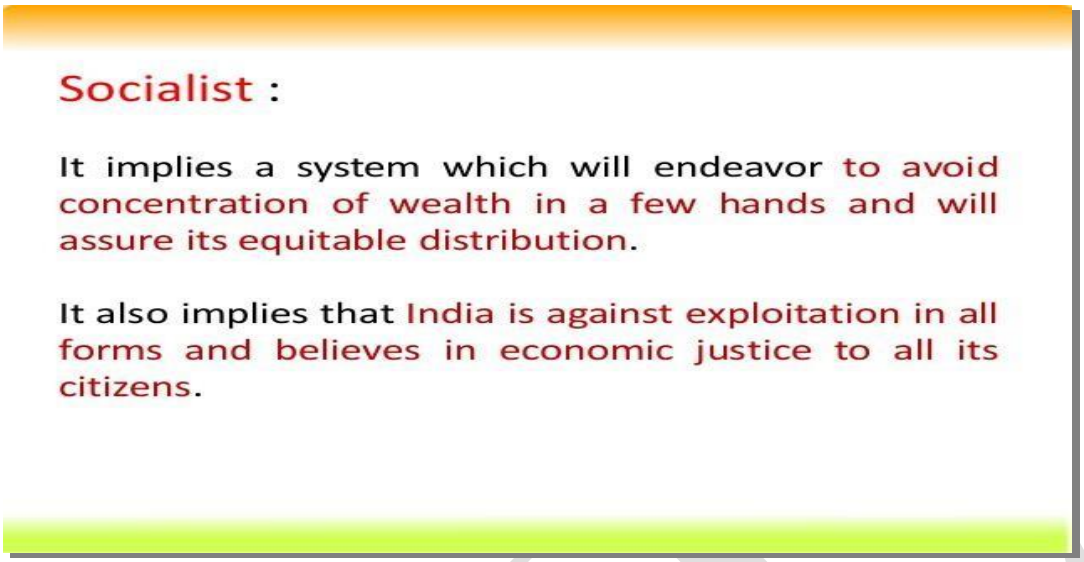
India has adopted the "British" pattern of the parliamentary democracy. But there is a big difference. While in UK, the Queen or Monarch is the hereditary head of the state, India does not have a hereditary post of Head of the State. The Head of the state in India is President and he / she is elected. Though people don't directly take part in election of the President of India, yet Indian President is indirectly elected by the people, because he / she is elected by the elected representatives. Any Indian without discrimination to the caste / creed / religion can contest for Presidential elections and can occupy the office, provided he fulfils the eligibility conditions as prescribed by the constitution.

Republic :

Means, the head of the State is not a hereditary monarch but a President who is indirectly elected by the people for a definite period.

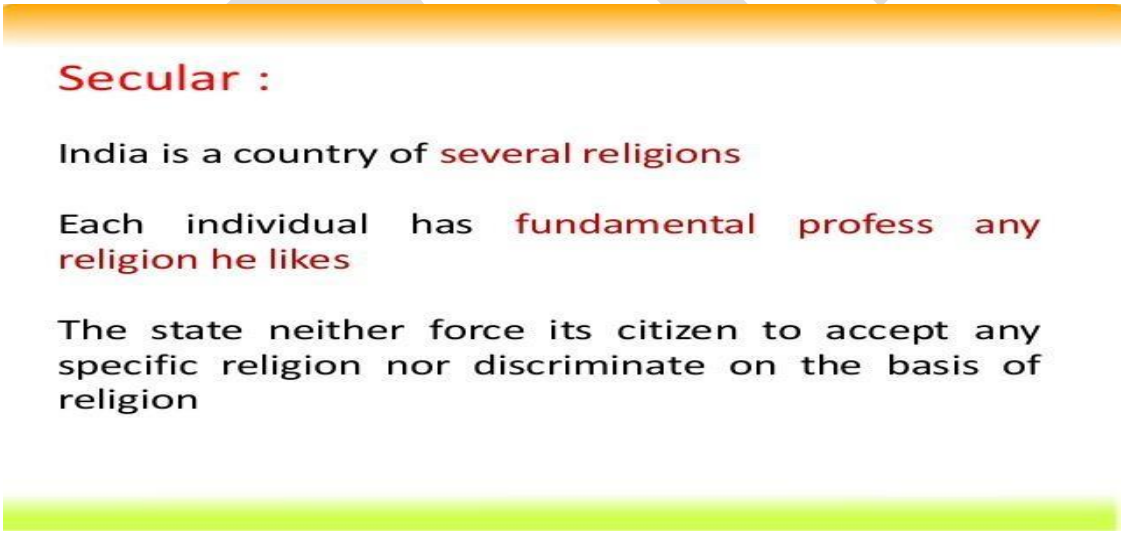
Socialist State:

Indian socialism is democratic socialism. The goals of the socialism are to be realized through democratic means. Please note that in the original constitution the term "Socialist" was not in the Preamble. It was added by the 42nd amendment in 1976.



Secular:

India is secular country. Here No religion is a state religion. The constitution provides equality treatment of all religions by the government and equal opportunities for all religions. Again , the term "secular" was not in the Preamble. It was added by the 42nd amendment in 1976.



Parliamentary Form of Government:

India has a parliamentary form of Government. The question is what is a government? And what it is made up of? The parliamentary system means that the ministers get their legitimacy from a Legislature body that is the Parliament of India. Our parliament has two houses viz. Lok Sabha

and Rajya Sabha. So, it's called bicameral parliament. Part V of the Constitution trifurcates the State into three equal constituents, the Executive, Legislature and Judiciary. The composition of the Legislature, the Parliament of India, is of members elected by adult suffrage in the case of the Lok Sabha, and indirectly by the State Legislatures in case of Rajya Sabha. The Lok Sabha seats are divided into territorial constituencies and each elected member becomes the representative of all the people residing in his constituency and registered in the electoral roll of that constituency.

A blend of Federal and Unitary

System The constitution of India establishes the country a partly federal and partly unitary government. India is a federal system because there are separate governments in the Union and States and there is division of power. But, there are constitutional provisions and practices which have imparted unitary features by giving more powers to the centre. Some of them are

- It provides ***Single Citizenship*** to all the citizens of the country; it has single constitution for both the centre and states, though Jammu & Kashmir has a separate constitution.
- The ***parliament has power*** to legislate on the matters included in ***the Union List as well as the state list.***
- There are emergency provisions which make the system virtually a unitary system. The Change in the names and boundaries of the states can be done by the parliament of India.
- There is ***an integral judiciary*** system.
- There are ***all India services*** such as IAS, IFS and IPS. The Governors of the states are agents of the President.
- There is an election commission which is central agency for elections at all levels.
- There ***is unequal representation of the states*** in council of States (Rajya Sabha).
- The Planned development of the whole country is responsibility of the planning Commission.
- The ***states are dependent*** on center for economic assistance and grants.

UNION LEGISLATURE



- Union legislature is also known as "PARLIAMENT"
- The parliament consist s of the president, the council of states i.e Rajya Sabha and the house of people i.e Lok Sabha
- The members of both the houses is known as MPs or members of the parliament
- The parliament has to meet at least twice in a year

TWO HOUSES

LOK SABHA

- It is also known as lower house
- It is green in color
- It consist of 550 members
- Members are directly elected
- To become its member the person must be 25ys of age
- Presiding officer is speaker

RAJYA SABHA

- It is also known as upper house
- It is green in color
- It consist of 250 members
- Members are directly elected
- To become its member the person must be 25ys of age
- Presiding officer is vice-president

Integrated Judiciary:

In United States there are separate Judicial systems for the Union and the states. In India the Judiciary is integrated. The supreme judicial courts are not in states. The states have high courts but the verdicts of these courts are subject to appeal to the Supreme Court. The Constitution has made the High Courts subordinate to the Supreme Court.

Universal Adult Franchise:

Indian constitution provides adult and universal franchise to all citizens. Every citizen who is above 18 years has a Voting Right without any discrimination.

Preamble Of Indian Constitution

- **Introduction**
- **Meaning of Preamble**
- **Object, purpose and scope of Preamble**
- **Preamble how far useful in interpreting the Constitution**
- **Preamble, whether a part of the Constitution**
- **Whether the Preamble can be amended**
- **Preamble, whether necessary with the Constitution**
- **Contents of the Preamble**
  - **We, the People of India...**
  - **Sovereign, Socialist, Secular, Democratic, Republic**

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a '[SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC] and to secure to all its citizens:

Justice, social, economic and political;

Liberty of thought, expression, belief, faith and worship;

Equality of status and of opportunity; and to promote among them all

Fraternity assuring the dignity of the individual and the 2[unity and integrity of the Nation];

In our constituent assembly this twenty-sixth day of November, 1949, do **hereby adopt, enact and give to ourselves this constitution.**

Meaning of preamble

The term 'Preamble' means the introduction to the Statute. It is the introductory part of the constitution. In re ***Berubari Union case***[9]**,** the Supreme Court observed that the Preamble to the

[9] Retrvved from http://indiankanoon.org/doc/1120103/

Constitution was "a key to open the mind of the makers and shows the general purposes for which they made the several provisions in the Constitution."

Object, Purpose and Scope of the Preamble

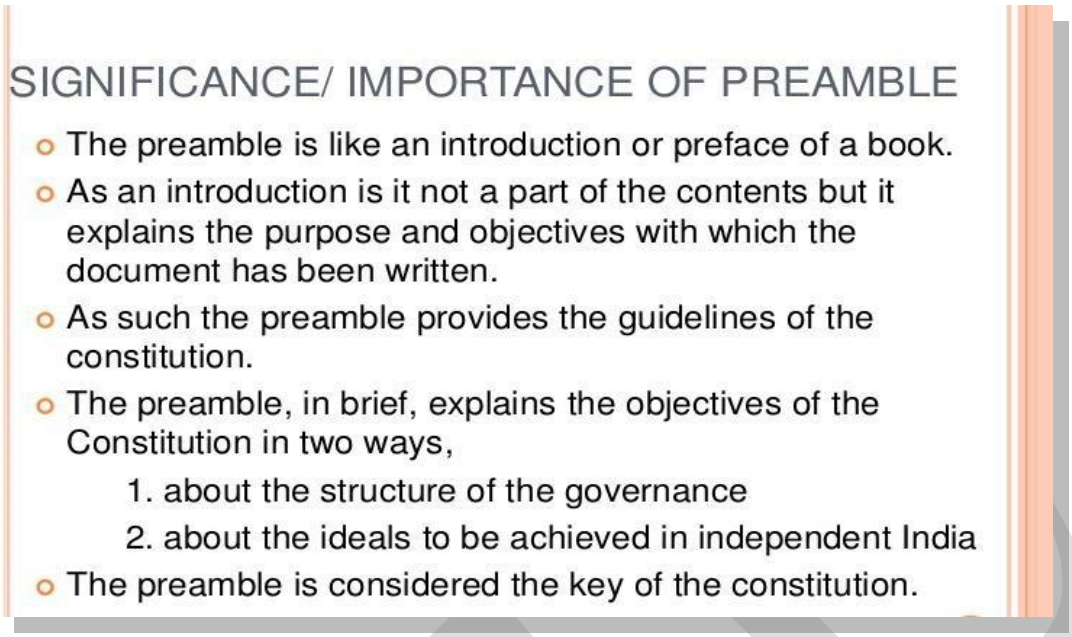
In short, the Preamble contains a recital of certain facts relating to the Statute. The framers of the Constitution gave to the Preamble "the pride of place". The Preamble was finalised by the Constituent Assembly in the last. The object was to see that it was in conformity with the Constitution as accepted by the Assembly.

The Preamble contains a noble and grand vision kept before them by the framers of the Constitution. The spirit or the ideology behind the Constitution is sufficiently crystallized in the Preamble. It embodies the fundamentals, the great purposes, objectives and the policy underlying the provisions of the Constitution..

The Supreme Court in Kesavananda Bharati case[10], observed that the *objectives specified in the Preamble contained the basic structure of the Constitution, which cannot be destroyed. The Preamble contains the source from which the Constitution comes.*

The Preamble explains in unambiguous terms that the Constitution was enacted and given to them by the People of India through their representatives, assembled in a sovereign Constituent Assembly. It is, therefore, the People of India, which are the source of authority under the Constitution. It also contains the enacting Clause which brings into force the Constitution.8 It gives the date of the commencement of the Constitution.

[10] Retrived from http://indiankanoon.org/doc/257876/.



Preamble how far useful in interpreting the Constitution

In Berubari Union case[11], the *Supreme Court held that the Preamble had never been regarded as the source of any substantive power conferred on the Government or on any of its departments*. Such powers, the Court said, were expressly granted in the body of the Constitution. *The Court further explained that "what is true about the powers is equally true about the prohibitions and limitations"*. It, therefore, observed that the Preamble had limited application. The Court laid down that the Preamble would not to be resorted to if the language of the enactment contained in the Constitution was clear. However, "if the terms used in any of the articles in the Constitution are ambiguous or are capable of two meanings, in interpreting them some assistance may be sought in the objectives enshrined in the Preamble.

*But, in **Kesavananda Bharati case***[12], *the Supreme Court attached much importance to the Preamble. The Court observed that the Constitution should be read and interpreted in the light of the grand and noble vision expressed in the Preamble*. It has been said that the Preamble to

[11] Retrvved from http://indiankanoon.org/doc/1120103/.

[12] Retrived from http://indiankanoon.org/doc/257876/.

the Constitution is the loadstar and guides those who find themselves in a grey area while dealing with its provisions.

Preamble, whether a part of the Constitution

The proceedings in the Constituent Assembly make it clear that the Preamble to our Constitution was enacted and adopted by the same procedure as the rest of the Constitution. The Preamble was put to vote, in the Constituent Assembly, by a motion which stated that the "Preamble stands part of the Constitution" and the motion was adopted Referring to the history of the drafting and the ultimate adoption of the Preamble*, the Supreme Court in* ***Kesavananda Bharati***[13] ***case****, laid down that the Preamble to the Indian Constitution was an integral part of the Constitution.*

Whether the Preamble can be amended

In Kesavananda Bharati[14] case the Apex Court held that being a part of the Constitution, the Preamble was not outside the reach of the amending power of the Parliament under Article 368. It was in the exercise of this amending power that the Constitution (42nd Amendment) Act, 1976 amended the Preamble, inserting therein, the terms 'Socialist', 'Secular' and 'integrity'.

Preamble, whether necessary with the Constitution

It is not necessary that every Constitution must open with a Preamble. As for instance, the Government of India Act, 1935, which served as the Constitution for British India prior to the enactment of the present Constitution, did not contain any Preamble.

Contents of the Preamble

We, the People of India...

The Preamble opens with the words *"We, the People of India".* These words declare in unambiguous terms that the Constitution has been adopted, enacted and given to themselves by the people of India. It is declared that ultimate sovereignty in India, resides in the people themselves and that the Constitution is founded on the authority of the people, in whom is vested the ultimate sovereignty.

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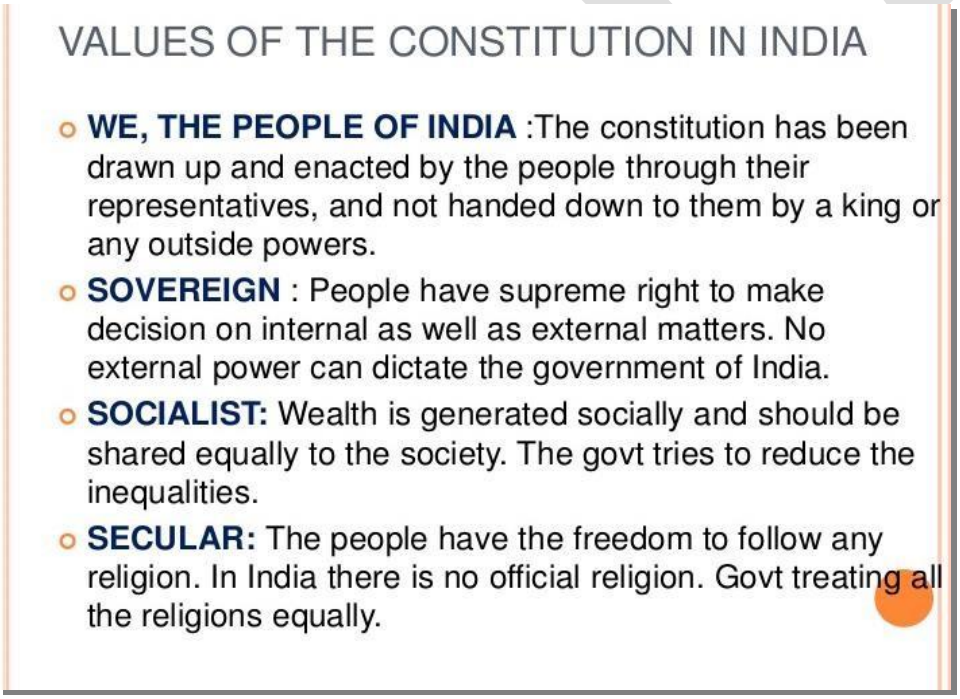
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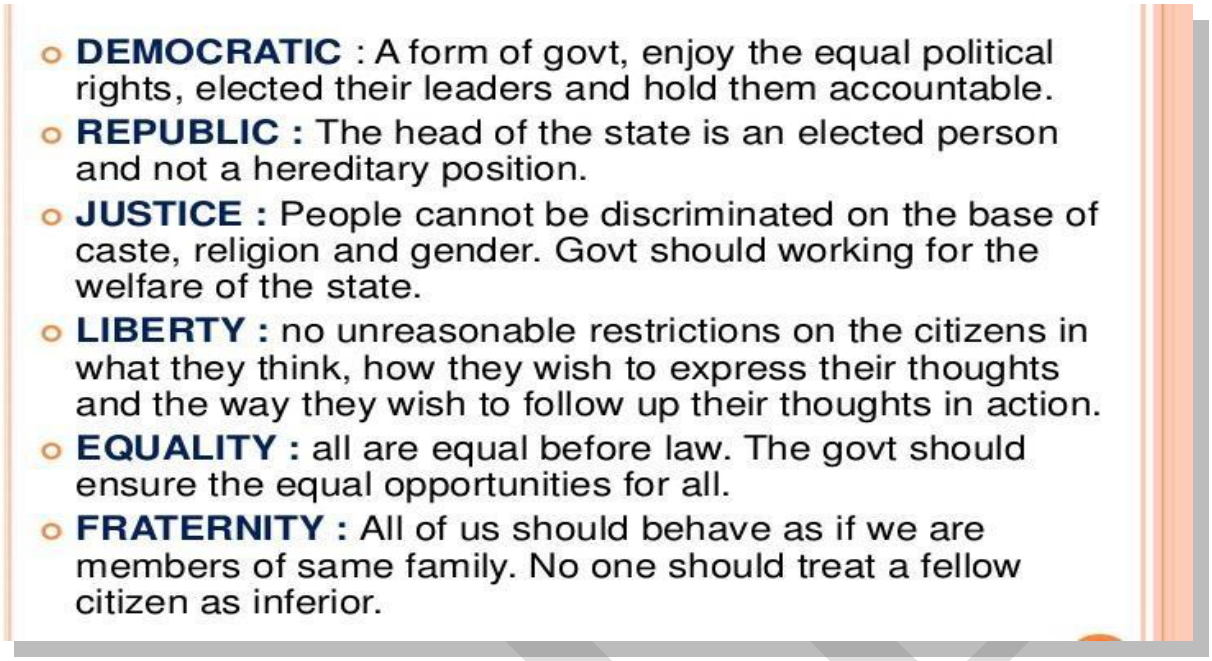
Mr. Nehru, speaking in the Constituent Assembly, *explained the significance of these words. He explained that the word 'People' indicated that the Constitution was not created by created by the States, nor by the people of the several States, but by the people of India in their aggregate capacity.* So enacted, it would not be open to any State, or group of States either to put an end to our Constitution or to secede from the Union created by it.

The founding fathers appear to have been impressed by the opening words in the Preamble to the Constitutions of the United States and of Eire.

In ***Kesavananda Bharati v. State of Kerala***[15] the Supreme Court observed: From the preamble we get that it is the people of this country who conferred this Constitution on themselves. The statement in the preamble that the people of this country conferred the Constitution on themselves is not open to challenge before this Court. Its factual correctness cannot be gone into by the Court which again is a creative of the Constitution. The facts set out in the preamble have to be accepted by this Court as correct. The Court further said that it was indisputable that the source and the binding force of "the Constitution was the sovereign will of the people of India."



[15] Retrived from http://indiankanoon.org/doc/257876/.



Sovereign, Socialist, Secular, Democratic, Republic

The word "***sovereign"·*** stands for the power which is absolute and uncontrolled within it own sphere. It explains that India is no more dependent upon any outside authority, and that both, internally and externally, India is sovereign. It recognises no foreign power as its master. India is a sovereign State as the United States of America

The term ***'Socialist'*** was inserted in the Preamble by the *Constitution (42nd Amendment) Act*, 1976. *The term 'socialist' literally means a political system which advocates State's ownership of the means of production, distribution and exchange.* However, it is not to be interpreted in this sense. Shri Swarn Singh, explained that by the word 'socialism' nothing more was meant than what was explained at the Avadi Session of Congress, which in short aimed at 'a mixed economy'.

In ***D.S. Nakara v. Union of India***[16]**,** the Court observed that "the basic framework of socialism is to provide a descent standard of life to the working people and especially provide security from cradle to grave."

[16] Retrived from http://indiankanoon.org/doc/1416283/

The term ***"Secular"*** inserted by the Constitution (42nd Amendment) Act, 1976, *explains that the State does not recognise any religion as a State religion and that it treats all religions equally, and with equal respect without, in any manner, interfering with their individual rights of religion, faith or worship.*

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"***Secularism"***, the Supreme Court explained, in ***St. Xavier's College v. State of Gujarat***, *"is neither anti-God, nor pro-God; it treats alike the devout, the agnostic and the atheist. It eliminates God from the matters of the State and ensures that no one shall be discriminated against on the ground of religion."* That, every person is free to mould or regulate his relations with his God in any manner. He is free to go to God or to Heaven in his own ways. And, that worshipping God is left to be dictated by his own conscience.

The concept of secularism was already implicit in the provisions contained in Articles 25 to 30 of the Constitution. Secularism is declared to be one of the basic features of the Constitution, which is beyond the amending power of the Parliament. It means honouring all religions.

The Constitution sets up in India a ***"Democratic Republic***". The term *"Democracy" is derived from Greek words* ***'demos'*** *which means* ***'the people'*** *and* ***'Kratos'*** *which means* ***'authority'***. It thus means government by the people. Democracy may properly be defined as that form of Government in the administration of which the mass of adult population has some direct or indirect share.

The ***term 'Republic'*** is used in distinction to ***'Monarchy'***. A Republic means a form of government in which the Head of the State is an elected person and not a hereditary monarch like the King or Queen in Great Britain. The Constitution of India sets up in India a 'republican form of government', in which, the ultimate power resides in the body of the people, enfranchised by universal adult suffrage. The President of India, who is the Executive Head of the State, is elected by the people (though indirectly), who holds office for a term of five years.

The Preamble secures to all the citizens of India

- ***Justice-*** Social, economic, and political

- ***Liberty-*** Of thought, expression, belief, faith and worship
- ***Equality-*** Of status and of opportunity

The Constitution of India profess to secure to the citizens social, economic and political justice. Social justice means the abolition of all sorts of inequities which may result from the inequalities of wealth, opportunity, status, race, religion, caste, title and the like.36 To achieve this ideal of social justice, the Constitution lays down the Directives for the State in Part IV of the Contitutions.

The expression ***"economic justice"*** means justice from the standpoint of economic force. In short, it means equal pay for equal work, that every person. should get his just dues for his labour, irrespective of his caste, sex or social status.

Political justice means the absence of any unreasonable or arbitrary distinction among men in political matters. The Constitution has adopted the system of universal adult suffrage, to secure political justice.

The term ***"Liberty"*** is used both in negative as well as positive sense. As a negative concept liberty means the absence of all undue or arbitrary interference with individual's action on the part of the State. In positive sense 'liberty' comprises of 'liberties' or rights which are considered essential for an individual to attain his potentialities and for the perfection of the national life. The Constitution professes to secure the liberty of thought, expression. belief, faith and worship, which are regarded essential to the development of the individual and the Nation,

"***Equality of status and of opportunity"*** is secured to the people' of India by abolishing all distinctions or discriminations by the State, between citizen and citizen, on the ground of religion, race, caste, sex or place of birth and by throwing open 'public places' to all citizens by abolishing untouchability and titles, by securing equality of opportunity in the matters relating to employment or appointment to any office under the State.

"Fraternity" means a spirit of brotherhood, brotherliness, a feeling that all people are children of the same soil, the same motherland. There is no express provision in the Constitution which reflects 'fraternity' as an object. However, there are provisions in the Constitution, such as common citizenship, the right of the citizen of India to move freely, to reside and settle in any part of the territory of India, to practise any profession or to carry on any occupation, trade or business, which generate this spirit of brotherhood.

'Dignity of the Individual' is to be maintained for the promotion of fraternity. Therefore, the Preamble assures the dignity of each and every individual. This dignity is assured by securing to each individual equal fundamental rights and at the same time, by laying down a number of Directives for the State to direct its policies towards, inter alia, securing to all citizens, men and women equally, the right to an adequate means of livelihood, just and humane conditions of work, a descent standard of life.

Unity 'and integrity' of the Nation sounds the concern of the Founding Fathers of the Constitution, for maintaining the independence of the country as well as to make the experiment of democracy successful. Therefore while securing rights and freedoms for the individuals, they incorporated in the Constitution elaborate provisions conferring on the State overriding powers, so as to contain fissiparous forces from endangering the unity and integrity of the country

The Preamble declares that the People of India adopted, enacted and gave to themselves the Constitution on 26th November, 1949. But, the date of commencement of the Constitution was fixed to be 26th January, 1950. Article 394 provides that Articles 5, 6, 7, 8, 9, 60, 324, 367, 379, and 394 came into force on the adoption of the Constitution on 26th November, 1949. The rest of the provisions of the Constitution came into force on 26th January, 1950 and this day is referred to as the commencement of the Constitution.

CITIZENSHIP

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Termination of citizensidp of india

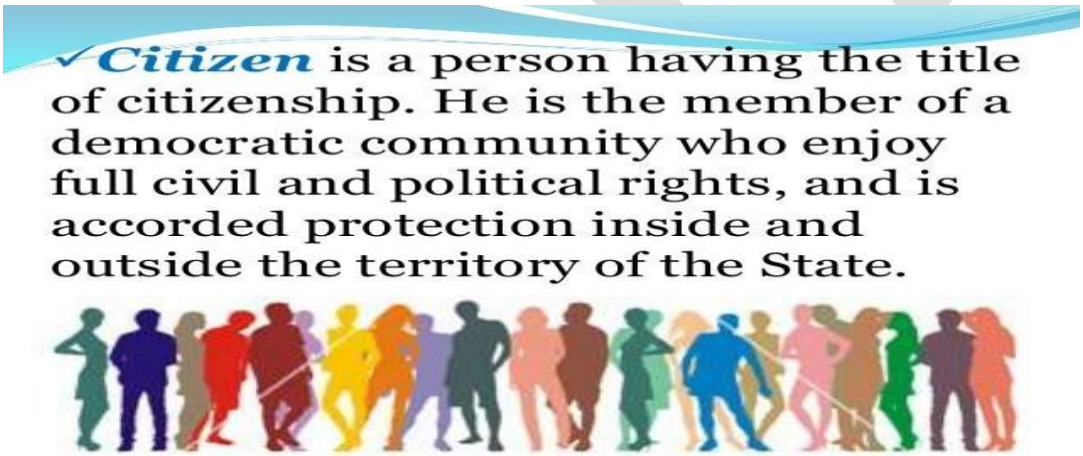
- ***Renunciation of Citizenship (Section 8)***
- ***Termination of Citizenship (Section 9)***
- ***Deprivation of Citizenship (Section 10)***

Introduction

Part II of the Constitution deals with the law relating to Citizenship of India- at the Commencement of the Constitution, Le., on 26th January, 1950. As regards the Citizenship of India subsequent to the commencement of the Constitution, the provisions are contained in the Citizenship Act, 1955 enacted by the Union Parliament under Article 11.

Meaning of Citizen, Citizenship

A citizen of a State is a person who enjoys full civil and political rights in that State. He enjoys full membership of the political community. Therefore, citizenship simply means the membership of the political community or the State.

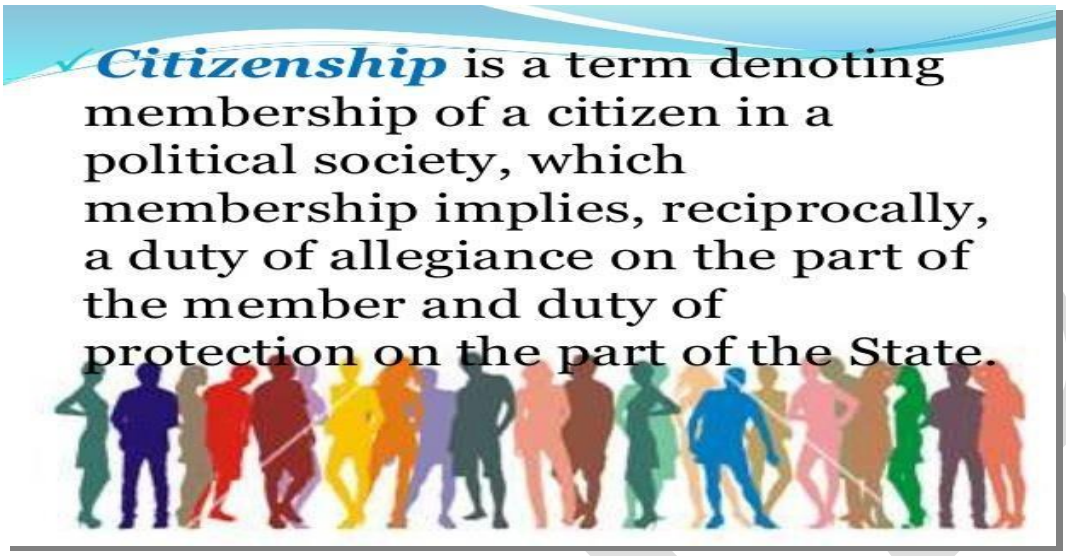


Meaning of Citizenship

Citizenship carries with it certain advantages. There are certain Fundamental Rights which are available only to the citizens of India. Again, citizens alone have the right to hold certain high offices, such as, that of the President, the Vice President, the Governor of a State, the Judges of the Supreme Court and the High Courts, the Attorney-General, and the Advocate General of a State. Also, the right to vote to elect representatives of the Union and the State Legislatures, and

the right to contest the elections and be elected to such Legislatures is vested in a citizen of India only.

Citizenship carries with it certain obligations as well. For example, the Fundamental Duties contained in Article 51-A are addressed to the citizens of India only.



Citizenship and Nationality

Citizenship may be distinguished from nationality of a person. While .the former refers to the relationship of an individual with the State from the internal aspect, the latter refers to similar relationship from the Internatiol1al aspect.

The term national is often used as synonymous with citizen. But, the former has a broader significance than the latter. For, while all citizens of a State must be its nationals, all nationals may not be its citizens. Further, while nationality is the concept of International Law, citizenship is determined under the municipal law. A person is a national of a State if there is a genuine connection between the State and such person, conforming to the general principles of International Law, irrespective of the rights enjoyed by that person under the municipal law of that State. This relation continues even though that person is outside the territorial limits of the State.

Distinguished From Nationality And Nations.

- From the point of view of international law, "Citizenship" and "citizen" do not exactly mean the same as "Nationality "and "national."



- The national of a State include not only its citizens who enjoy full civil and political privileges but also all others who are not its citizens, but because they owe allegiance to it, are not regarded as aliens,
  While all citizen are nationals of a State, not all nationals are citizens of a state.

Citizenship of India at the commencement of the Constitution

A person, at the commencement of the Constitution, could be a citizen of India in the following ways-

4. ***By domicile***
5. ***By migration***
6. ***By registration***

Citizenship by Domicile (Article 5)

According to Article 5 of the Constitution, a person shall be a citizen of India, if, he' fulfils the following two conditions-

1. *He must,* at the commencement of the Constitution, *have his domicile,* in the territory of *India;* and,

2. Such *person must fulfill anyone of the following three* conditions
   (a) he was born in the territory of India; or
   (b) either *of his parents* was born in the *territory of India*; or
   (c) he must have been *ordinarily resident* in the territory of India for *not less than 5 years* immediately preceding the commencement of the Constitution.

Conditions contained in (a), (b) and (c) are alternative and anyone of them needs to be fulfilled by a person having domicile in India, to be a citizen of India.

The expression *territory of India, meant the territory of India as is defined under Article 1(3),* of the Constitution of India, which means the territory of Independent India.

Domicile

The *term 'domicile' is not defined* in the Constitution. Ordinarily, *it means to home or the place where a person resides with the intention to remain there permanently and without any present intention to remove himself therefrom*. "Domicile" is different from "place of birth". The two are not synonymous expressions, though appeared to be so to some of the members of the Constituent Assembly.

Two elements are necessary for constituting the domicile of a person-

(a) actual residence at the place, and

(b) the present intention to remain there permanently.

Thus, there must be both, the factum and animus, to constitute the existence of domicile, for neither mere residence nor mere intention to reside at the place is sufficient to constitute the domicile of the person. The intention may be express or it may be inferred from the conduct or circumstances of the person.

In ***Michael v. State of Bombay,***[17] the petitioner, born in Goa in 1918 to Goan Parents, came to Bombay in 1927 when he was 9 years of age. He was educated in Bombay and having completed his school education in 1936, started his father's business in Bombay itself. In 1942, he joined the Royal Indian Force and was discharged from the service in 1946. In the discharge certificate issued to him, he gave as his permanent residence his Bombay address for all necessary communications to him and carried on his father's business there. His name appeared in the

[17] Retrieved from< http://www.indiankanoon.org/doc/1736523/>.

Municipal Rolls as a voter in Bombay. All these facts go to show that he enjoyed the civil franchise in the city of Bombay. He was held to be having his domicile in Bombay.

In ***Mohd. Raza v. State of Bombay,***[18] the appellant came to India in 1938 and remained there till 1945, when he went on a pilgrimage to Iraq for one year. On his return to India from the pilgrimage, he registered himself as a foreigner and took the job of cashier in a hotel in India. Several times his stay in India was extended. In 1957, his request for extension of his stay was refused. These facts established that there was a change in his mind, and that he had no intention to make India his permanent home. His application for extending his stay in India, made from time to time, fortified this conclusion.

2. Citizenship by Migration (Article 6)

Article 6 is applicable to *persons of Indian origin, migrating from Pakistan to* India. The expression "persons of Indian origin" means those who themselves were born within the territory of India as defined in the Government of India Act, 1935, or either of their parents was born in India so defined, or any of their grandparents was born in the territory of India so defined.

Any of such persons migrating from Pakistan to India could acquire Indian citizenship, under this provision. ***Article 6 has classified such persons*** migrating from Pakistan to India, into two categories-

(i) those who came to India before 19th July, 1948, and

(ii) those who came to India on or after 19th July, 1948

Migration from Pakistan to India before 19th July, 1948

Article 6 provides that a person of Indian origin shall be deemed to be a citizen of India, at the commencement of the Constitution, if he, having migrated from Pakistan to India before the 19th July, 1948, has been ordinarily resident in the territory of India since the date of his migration.

Migration from Pakistan to India on or after 19th July, 1948

A person of Indian origin shall be deemed to be a citizen of India if he migrated from Pakistan to India on or after 19th July, 1948, only when he has been registered as a citizen of India by an

[18] Retrieved from <http://indiankanoon.org/doc/1557905/>.

Officer appointed in that behalf by the Government of the Dominion of India. His application could be accepted for registration only if he had been resident in the territory of India for at least six months immediately preceding the date of his application.

Article 6 specifies 19th July, 1948 for determining the acquisition of citizenship by immigrants from Pakistan. It was on this date that the Influx from Pakistan (Control) Ordinance, 1948, promulgated by the Governor-General of India, came into force. The Ordinance was promulgated for regulating the movements of people from Pakistan to India. Under this Ordinance, permit system was introduced for the entry to India from Pakistan. The Ordinance was replaced by the Influx from Pakistan (Control) Act, 1949.

Citizenship of Migrants to Pakistan (Article 7)

Article 7 provides that a citizen of India, whether by domicile or by migration, ceased to be a citizen of India, if he had migrated to Pakistan after 1st March, 1947.

Migrants returning back to India

Proviso to Article 7 contains an exception in favour of persons who having migrated to Pakistan, returned back to India. It provides that a person, who after having migrated to Pakistan, returned to the territory of India, under a permit for resettlement or permanent return to India, issued by or under the authority of any law, could be registered as a citizen of India. Such a person would be deemed to have migrated from Pakistan to India after 19th July, 1948.

Citizenship by Registration (Article 8)

Article 8 deals with the right of citizenship of persons of Indian origin, residing outside undivided India. Any such person "would be deemed to be a citizen of India, if he was registered as a citizen of India, by the Diplomatic or Consular Representative of India in the country where, for the time being, he was residing."

Under Article 8, a person of Indian origin residing abroad, at the commencement of the Constitution, could register himself as a citizen of India, by making an application to the Diplomatic or Consular Representative of India in the country where he was for the time being residing. Such an application could be made before or after the commencement of the

Constitution, i.e., 26th January, 1950. The application could be made in the form and manner prescribed by the Government of the Dominion of India or the Government of India.

No Dual Citizenship (Article 9)

Article 9 enacts that 'a person who has voluntarily acquired the citizenship of a foreign State shall not be deemed to be a citizen of India.' This Article deals with the voluntary acquisition by a citizen of India, of citizenship of a foreign State, before the commencement of the Constitution. Cases of acquisition of foreign citizenship, after the commencement of the Constitution, are dealt with under the Citizenship Act, 1955.

Citizenship Of India After The Commencement Of The Constitution (The Citizenship Act, 1955)

In the exercise of the power conferred by Article 11, Parliament has enacted the Citizenship Act, 1955. The Act does not apply to a company, association or body of individuals, whether incorporated or not.

Acquisition of Citizenship of India After the Commencement of the Constitution (i.e., after 26th January, 1950)

The Citizenship Act, 1955 provides the following modes of acquiring Indian citizenship after the commencement of the Constitution -

Citizenship by Birth (Section 3)

Section 3 of the Citizenship Act, 1955 provides that every person born in India on or after 26th January, 1950, shall be a citizen of India by birth.

However, no such person as above said shall be a citizen of India, if at the time of his birth-

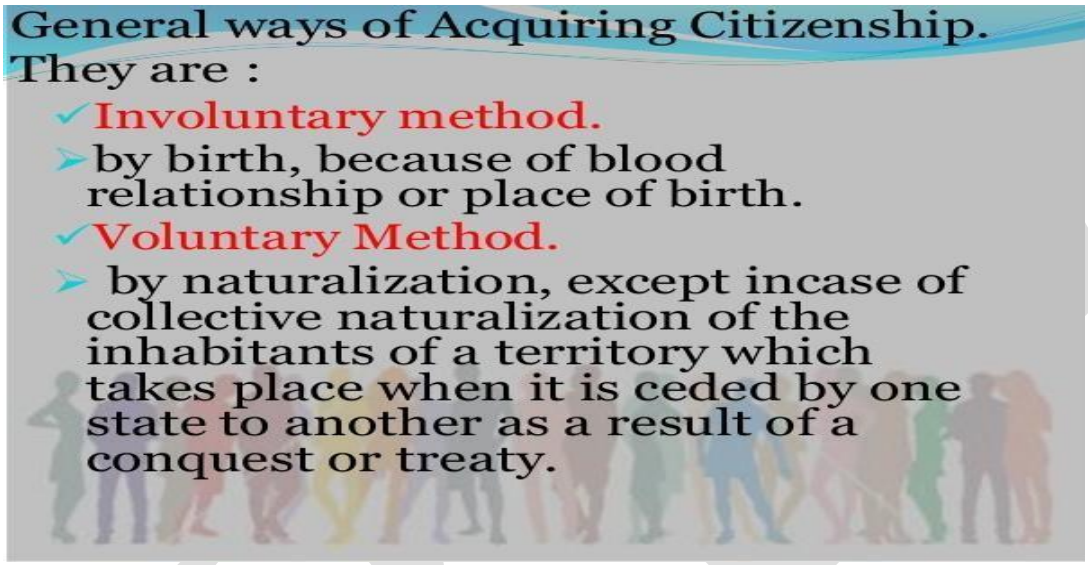
(a) his father (or mother) possesses such immunity from suits and legal processes as is accorded to an envoy of a foreign sovereign power and (he or she, as the case may be)34 is not an Indian citizen; or

(b) his father or mother is an enemy alien and his birth takes place in a territory then under enemy occupation.

The Citizenship Act, 1955 has been amended by the Citizenship (Amendment) Act, 1986 with the object of making the acquisition of citizenship of India somewhat difficult. The object is to

prevent persons coming to India from Bangladesh, Sri Lanka and other African countries, from becoming citizens of India.

The Citizenship (Amendment) Act, 2003 has amended Section 3 to the effect that a person born in India on or after the commencement of this Amendment Act (i.e., 3-12-2004), shall be a citizen of India by birth if at the time of his birth (i) both of his parents are citizens of India; or (ii) one of whose parents is a citizen of India and the other is not an illegal migrant".



Citizenship by Descent (Section 4)

Section 4 of the Citizenship Act, 1955, provides that a person born outside India on or after 26th January, 1950, "Shall be a citizen of India by descent, if, at the time of his birth, his father (either of his parents) is a citizen of India.

However, if the father (parentJ3a of such a person is himself a citizen of India by descent, then, such a person shall not be a citizen of India unless -

(a) his birth is registered at the Indian Consulate, or

(b) his father is, at the time of his birth, in the service under a Government in India.

The birth of such a person can be registered, with the Indian' Consulate, within one year of its occurrence or within one year of the commencement of the Citizenship Act, 1955, or within such period as extended by the Government of India.

Citizenship by Registration (Section 5)

Section 5 of the Citizenship Act, 1955 provides for the registration of certain categories of persons as citizens of India. This Section lays down that the prescribed authority may, on application made in this behalf, register as citizen of India, any person, who is not a citizen by virtue of any provision of the Constitution or by virtue of any other provisions of the Citizenship Act, 195540 and belongs to any of the following categories:

a. Persons of Indian origin, who are ordinarily resident in India and have been so resident for six months (five years) (seven years) immediately before making an application for registration;
b. Persons of Indian origin who are ordinarily resident in any country or place outside undivided India;
c. Women, who are or have been married to citizens of India. After the passing of the Citizenship (Amendment) Act, 1986, this provision reads as "persons who are, or have been, married to citizens of India and are ordinarily resident in India and have been so resident for five years (seven years) immediately before making an application for registration";
d. Minor children of persons who are citizens of India;
e. Persons of full age and capacity, who are citizens of a country mentioned in the First Schedule to the Citizenship Act, 1955. Category (e) is substituted by the Citizenship (Amendment) Act, 2003 by the following categories:
f. a person of full age and capacity whose parents are registered as citizens of India under clause (a) of this sub-section or sub-section (1) of Section 6;
g. a person of full age and capacity, who or either of his parents was either citizen of independent India and has been residing in India for one year immediately before making an application for registration;
h. a person of full age and capacity who has been registered as an overseas citizen of India for five years and who has been residing in India. for two years before making an - application for registration.

For the purpose of clauses (a) and (c) above, an applicant shall be deemed to be ordinarily resident in India if,-

1. he has resided in India throughout the period of twelve months immediately before making an application for registration; and
2. he has resided in India during the eight years immediately preceding the said period of twelve months for a period of not less than six years.

For the purpose of this Section, a person shall be deemed to be of Indian origin if he or either of his parents was born in undivided India or in such other territory which became part of India after the 15th day of August, 1947.

Citizenship by Naturalization (Section 6)

Naturalization means to adopt, to introduce to any other country, to admit to citizenship, or to naturalise as a citizen of a State. In the context of citizenship, naturalisation is "the act by which rights of citizenship are conferred by a State upon a person who was before, an alien to that State". Section 6 of the Citizenship Act, 1955, provides for the acquisition of citizenship of India by naturalisation. The Government of India may, if satisfied that the applicant is qualified for naturalisation, grant him a certificate of naturalisation. The qualifications for naturalisation of a person are as follows-

1) that he must not be a citizen of a country where Indian citizens are prevented from becoming citizens of that country by naturalisation;
2) that he has renounced the citizenship of his own country according to the law of that country any has notified such renunciation to the Central Government;
3) that he has either resided in India or has been in service of Government of India for 12 months immediately preceding the date of making the application for naturalisation;
4) that during 7 years (12 years), (14 years) immediately preceding the above period of 12 months, he has either resided in India or has been in the service of Government or partly the one and partly the other, for period amounting in aggregate to not less than 4 years (9 years),6 (11 years),
5) that he is of good character;
6) that he has adequate knowledge of at least one language recognised by the Constitution of India; and

7) that in the event of a certificate of naturalisation being granted to him, he intends to reside in India or to serve under a Government in India or under an International Organisation or under a society, company or body of persons established in India.

Citizenship by Incorporation of Territory (Section 7)

Section 7 of the Citizenship Act, 1955, provides that if any territory, not being part of the territory of India, becomes a part of the territory of India, the Government of India may, by order, notified in the Official Gazette, specify the persons, who are residents of such territory, to be citizens of India from the date to be specified in the order.

Termination of citizenship of India

Article 9 of the Constitution as already discussed above, lays down that a citizen of India, shall cease to be a citizen of India, if he had voluntarily acquired the citizenship of a foreign State, prior to or at the commencement of the Constitution. As regards the termination of citizenship of India subsequent to the commencement of the Constitution, the Citizenship Act, 1955 provides the following ways-

(a) by renunciation, or

(b) by termination or

(c) by deprivation

Renunciation of Citizenship (Section 8)

Section 8 of the Citizenship Ad, 1955 provides that a citizen of India of full age and capacity, [who is also a citizen or a national of any other country], may renounce his Indian citizenship, by making a declaration to the effect, (in the prescribed form and manner), and having it registered with the prescribed authority. Upon such registration, that person shall cease to be a citizen of India.

But, if, such a declaration is made during any war in which India is engaged, the registration of such declaration shall be withheld until the Central Government otherwise directs. Clause (2) of Section 8 provides that where a male person renounces his citizenship, every minor child of that person shall also cease to be a citizen of India. However, such a child may resume Indian

citizenship by making a declaration [in the prescribed form and manner] to that effect, within one year of his attaining majority/maturity.

The Citizenship (Amendment) Act, 1992 has amended sub-section (2) of Section 8 to the effect that in place of the words "a male person", the words "a person" shall be substituted. Thus, the minor children of a person, whether male or female, who renounces his/her Indian citizenship, shall also cease to be citizens of India.

Termination of Citizenship (Section 9)

Section 9 of the Citizenship Act, 1955 provides that if a citizen of India voluntarily acquires tjIe citizenship of any other country, subsequent to the . Commencement of the Constitution, he shall cease to be a citizen of India. But, it will not apply to a citizen of India who, during any war in which India may be engaged, voluntarily acquires the citizenship of any other country. The question falling within section 9 has to be determined to the extent indicated therein, by the Central Government and not by the courts, The question is *a question affect* which would require careful scrutiny of evidence,7

Deprivation of Citizenship (Section 10)

Section of *the Citizenship Act,* 1955 provides that a citizen of India, whether by *naturalization* or by *registration* or by *domicile* or by *residence,* may be deprived of his citizenship of India, by an order of the Central Government, if it is satisfied-

1. that the *registration* or certificate of *naturalisation* was obtained by him by means of fraud, false representation or concealment of any material fact; or
2. that he has shown himself, by act or speech, to be disloyal or disaffected towards the Constitution of India; or
3. that he, during a war in which India may be engaged, unlawfully traded or communicated with the enemy; or
4. that *within five years* of his *registration* or *naturalisation,* he has been sentenced to imprisonment for *not less than two years;* or
5. that he has been ordinarily resident out of India for 7 *years* continuously and during that period, he has neither been at any time, a student of an educational institution in a country

outside India; nor, in the service of Government of India, or of an International Organisation of which India is a member; nor registered annually in the prescribed manner, at an Indian Consulate; his intention to retain his citizenship of India.

Before making an order *depriving a person of his Indian citizenship,* the Central Government is to give to him a written notice containing the grounds on which the order is proposed to be made. If the order is made on any of the above mentioned grounds specified in (i) to (iv) clauses, that person might have his case referred to a *Committee of Inquiry.*

In Satish Nambiar v. Union of India, overseas citizenship granted to the appellant on 18th May, 2006, was cancelled on 14th February, 2007. in the interest of security of India and the relationship with foreign countries. The order was based on the adverse report of the Special Security Agency. Holding that the order of cancellation of OCI was primarily an administrative decision, taken with reference to the peculiar facts and circumstances of the case, the Bombay High Court said the order could not be examined by the Court.

Q. What is the meaning of State provided under Art- 12 of the Constitution of India? Whether judiciary is included in State or not.

The constitution of India has defined the word' State' for the purpose of Part –III and Part IV.

In State of West Bengal v. Subodh Gopal Bose, the SC observed that the object of Part III is to provide protection to the rights and freedoms guaranteed under this part by the invasion of 'State'.

Art- 12

Sate under Art 12 of the constitution has Four Components:

1. The Government and Parliament of India-

Government means any department or institution of department; Parliament shall consist of the President, the House of People and Council of State.

2. The Government and Legislature of each State.

State Legislatures of each State consist of the Governor, Legislative Council, and Legislative Assemblyor anyofthem.

3. Local Authorities within the territory of India

Authority means

i. Power to make rules, bye- laws, regulation, notifications and statutory orders.
ii. Power to enforce them.

Local Authority means Municipal Boards, Panchayats, Body of Port Commisioners and others legally entitled to or entrusted by the government, municipal or local fund.

4. Other Authorities

Authorities other than local authorities working

i. within the territory of India or;
ii. outside the territory of India.

Judicial Scrutiny

To give a wider dimension to Fundamental Rights, the judiciary has interpreted State in different contexts at different times.

a) Principle of Ejusdem generis

In **University of Madras v/s Santa Bai** ,the Madras High Court evolved the Principle of ejusdem generis i.e. of the like nature. It means that those authorities are covered under the expression'other authorities which perform governmental or sovereign functions.

In **Ujjam Bai v/s Union of India**

The Supreme Court rejected the principle of ejusdem generis. It observed that there is no common genus between the authorities mentioned in Article 12.

b) Performance of commercial Activities ; or promotion of educational or economic interests

In **Rajasthan State Electricity Board v/s Mohan Lals**

it was held that to be State, it is not necessary that the authority must be performing governmental or sovereign functions.It should-

(i) Be created by the Constitution of India;
(ii) Have power to make laws.

c) Performance of fuctions very close to governmental or sovereign functions

In Sukhdev v. Bhagatram, LIC,ONGC and **IFC** were held to be State as performing very close to to governmental and sovereign functions. The Corporations are State when they enjoy

(i) power to make regulations;

(ii) Regulations have force of law.

d) <u>Clearance of five tests</u>

In R.D.Shetty v/s International Airport Authority, the Court laid down five tests to be an other authority-(i) Entire share capital is owned or managed by State.

(ii) Enjoys monopoly status.

(iii) Department of Government is transferred to corporation.

(iv) Functional character governmental in essence.

(v) Deep and pervasive State control.

In Union of India v/s R. C Jain, to be a local authority , an authority must fulfill the following tests-

i) Separate legal existence.

ii) Function in a defined area.

iii) Has power to raise funds.

iv) Enjoys autonomy.

v) Entrusted by a statute with functions which are usually entrusted to municipalities

e) <u>Object of Authority</u>

In Ajay Hasia v. Khalid Mujib the court observed that the test to k now whether a juristic person is state is not how it has been brought but why it has been brought.

<u>Whether Judiciary is State</u>

Jurists like H. M. Seervai, V. N. Shukla consider judiciary to be State. Their view is supported by Articles 145 and 146 of the Constitution of India.

i) The Supreme Court is empowered to make rules for regulating the practice and procedure of Courts.

ii) The Supreme Court is empowered to make appointments of its staff and servants; decide its service conditions.

In Prem Garg v/s Excise Commissioner H. P. the Supreme Court held that when rule making power of judiciary is concerned, it is State.

Other jurists say that since judiciary has not been specifically mentioned in Article 12, it is not State.

In **Rati Lal v. State of Bombay** it was held that judiciary is not State for the purpose Art- 12.

In A.R. Antulay v. R.S. Nayak and **N.S.Mirajkar v. State of Maharashtra,** it has been observed that when rule making power of judiciary is concerned it is State but when exercise of judicial power is concerned it is not State.

Indian Council of Agriculture Research-

S.M.Ilyas v. ICAR (1993), It has been held that the Indian Council of Agriculture Research is within the meaning of Art- 12.

Conclusion

The word 'State' under Article 12 has been interpreted by the courts as per the changing times. It has gained wider meaning which ensures that Part- III can be applied to a larger extent. We hope that it would continue to extent its width in coming times.

Q. What do you mean by Judicial Review? Is there any restriction on the powers of judicial review of courts? Discuss.

Introduction- Art- 13 provides the judicial review of all legislations in India, past as well as future. The power has been conferred on the High Courts and the Supreme Court of India which can declare a law unconstitutional, if it is inconsistent of Fundamental Rights.

High Court- Under Article- 226

Supreme Court- Under Article- 32

Meaning of Judicial Review:-

Judicial Review is the power of courts to pronounce upon the constitutionality of legislative acts which fall within their normal jurisdiction to enforce and the power to refuse to enforce such as they find to be constitutional and hence void.

Origin:-

The doctrine of judicial review was for the first time propounded by the Supreme Court of America in the case.

Case:- Marbury v. Maddison

In this case C.J. Marshall held that –

"The Constitution is either superior paramount law unchangeable by ordinary means or it is on a level with ordinary legislative Acts, and like other act is alterable when the legislature shall please to alter it……..certainly all those who framed written constitution contemplate them as forming the fundamental and paramount law of the nation and consequently, the theory of every such govt. must be that an act of the legislature repugnant to the constitution is void."

Case:- State of Madras v. V.G. Row (AIR-1952)

Patanjali Shastri C.J. observed – "Our Constitution contains express provisions for judicial review of legislation as to its conformity with the constitution."

Case:- A.K.Gopalan v. State of Madras (AIR 1950)

Kania C.J. observed that In India it is the constitution that is supreme and that a statute law to be valid, must be in all conformity with the constitutional requirements and it is for the judiciary decide whether any enactment is constitutional or not."

Case :- Keshwanand Bharti v. State of Kerala (AIR 1973)

It has been held that "Judicial review is the basic feature of the Indian Constitution and therefore it cannot be damaged or destroyed by amending the constitution under Article- 368 of the Constitution."

Case:- Tata Cellular v. UOI (1994 SC)

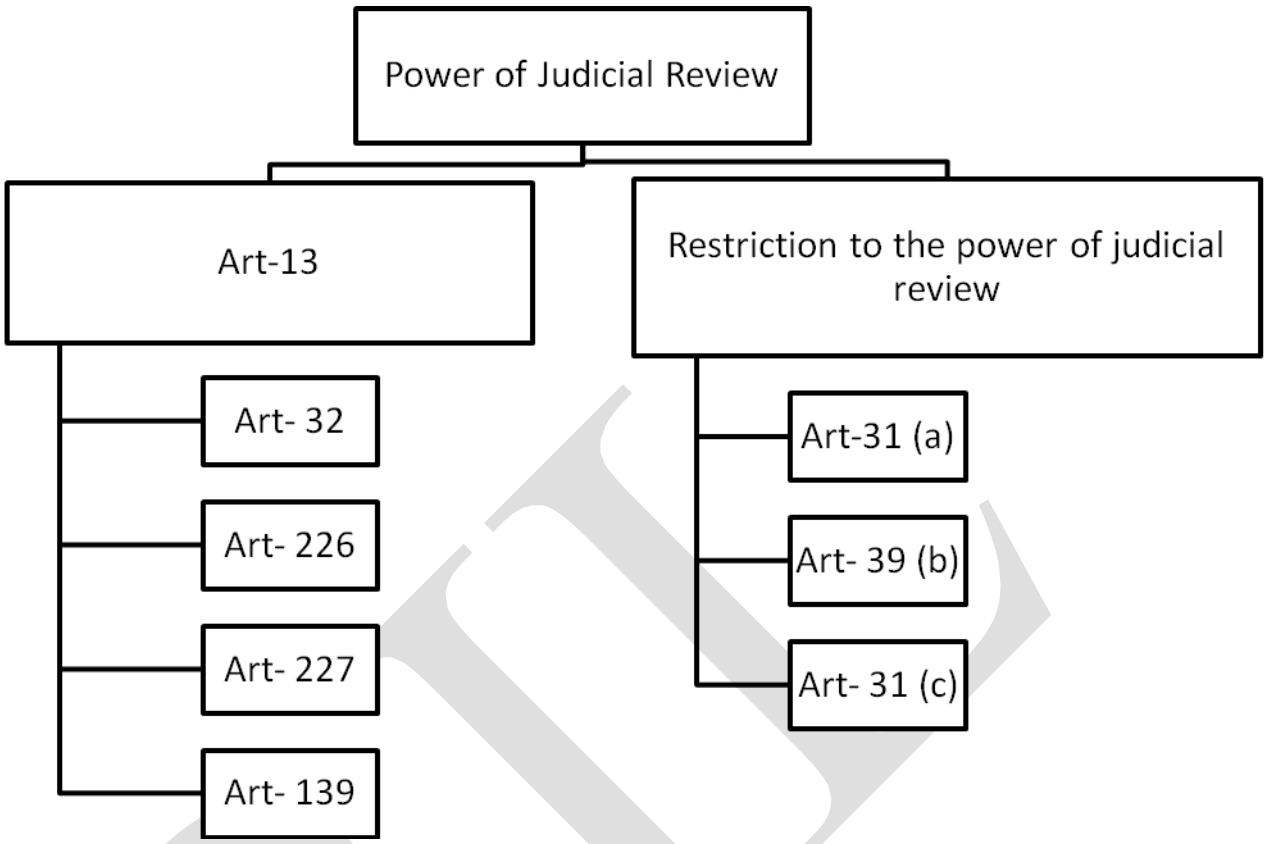
Case:- Mansukh Lal Vithal Das Chauhan v. State of Gujarat(1997 SC)

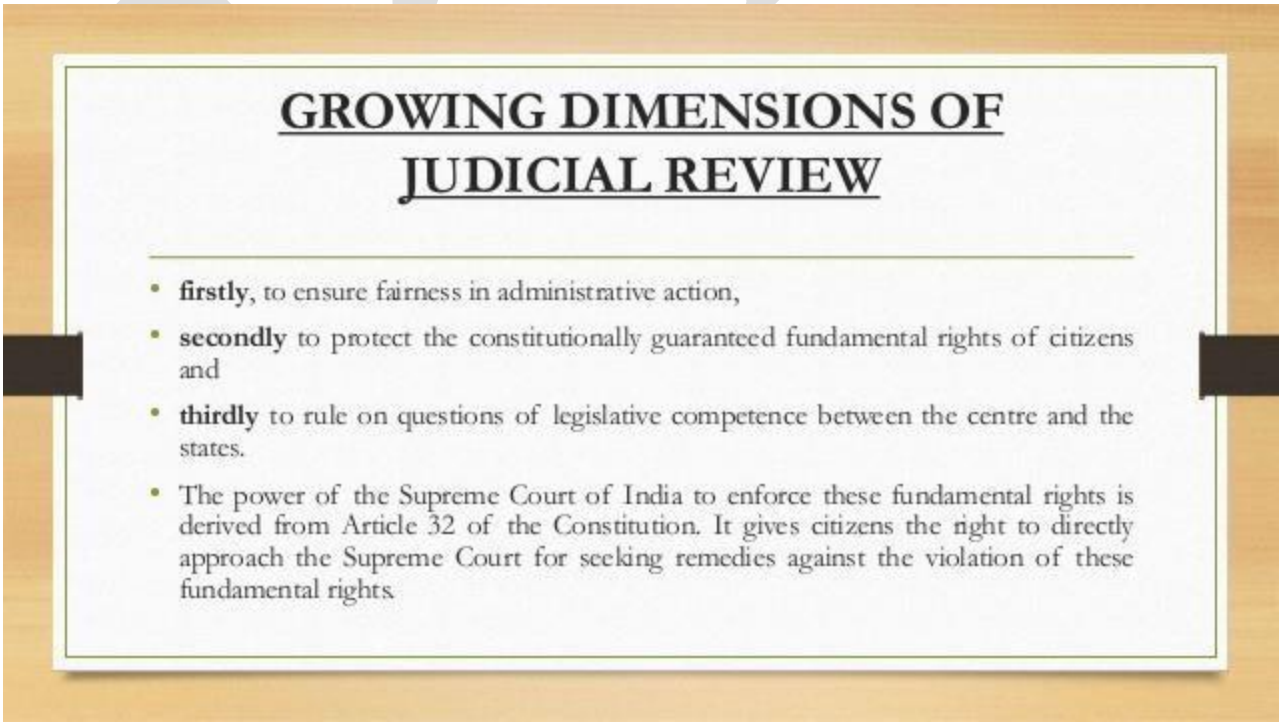
Supreme Court and the High Court can use their power of judicial review and can determine the question of legality in the following matters –

1. Whether the authority has exceed their power.
2. Whether the authority has committed the error of law.
3. Whether it has make a breach of the rule of of natural justice.
4. Whether it abuse its power while exercising the power of judicial review the court can not interfere in the administrative decision.

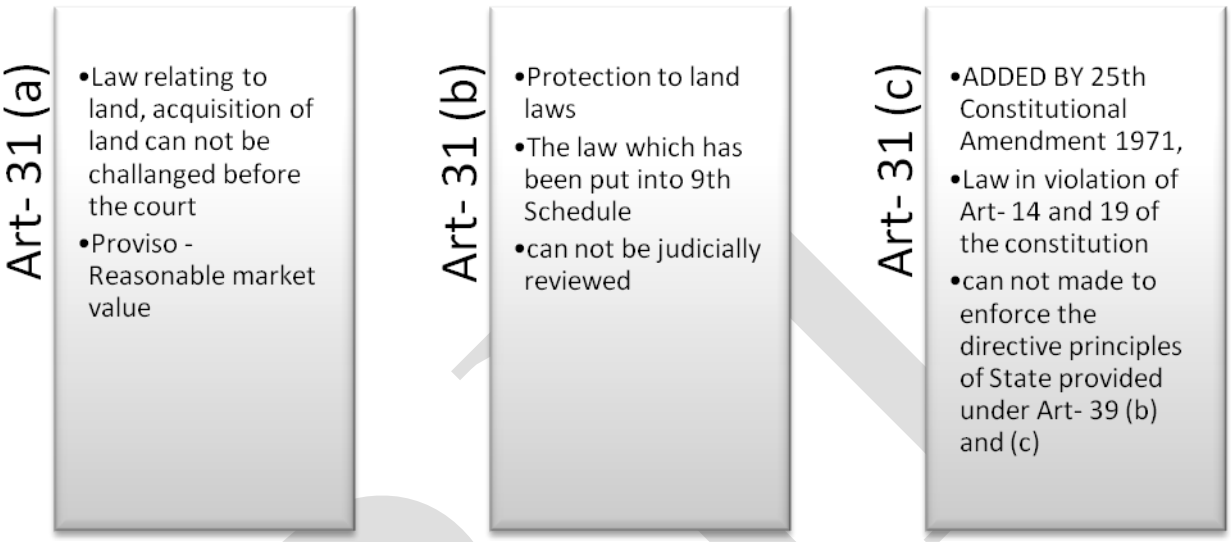
Case :- Madhulimaya v. SDM Mungare (AIR 1971)

The Court held that Sec- 144 and CH- VIII of Cr.P.C. are not unconstitutional.


Power of Judicial Review
Art-13
Art- 32
Art- 226
Art- 227
Art- 139
Restriction to the power of judicial review
Art-31 (a)
Art- 39 (b)
Art- 31 (c)


GROWING DIMENSIONS OF JUDICIAL REVIEW
firstly, to ensure fairness in administrative action,
secondly to protect the constitutionally guaranteed fundamental rights of citizens and
thirdly to rule on questions of legislative competence between the centre and the states.
The power of the Supreme Court of India to enforce these fundamental rights is derived from Article 32 of the Constitution. It gives citizens the right to directly approach the Supreme Court for seeking remedies against the violation of these fundamental rights.

Restriction on the Power of judicial Review of the Court



Case: - Woman Rao v. UOI (AIR- 1981)

It has been held that the amendments made to Acts which are already placed in the 9th Schedule are not automatically immunized from legal challenge, and hence their validity in the 9th Schedule, the protection of Art- 31 (b) is only available to original acts included in the 9th Schedule.

Case: - Keshwanand Bharti v. State of Kerala

It was held that any amendment in fundamental rights may be incorporated in relation to promote the directive principles if they are not destroying the basic structure of the constitution.

Case: - I.R. Coelho (dead) by LR v. State of Tamilnadu (2007)

A 9 judges Constitution Bench headed by Chief Justice Y.K. Sabharwal held that any law placed in the 9th Schedule after April 24, 1973 will be open to challenge.

Q. Write a short note on-

(1) Doctrine of Severability (2) Doctrine of Eclipse (3) Doctrine of Waiver

Doctrine of severability

Doctrine of severability provides that if an enactment cannot be saved by construing it consistent with its constitutionality, it may be seen whether it can be partly saved.

R.M.D. Chamarbaugwalla v. The Union of India (UOI) is considered to be one of the most important cases on the **Doctrine of Severability**. In this case, the court observed that:

*"**The doctrine of severability rests, as will presently be shown, on a presumed intention of the legislature that if a part of a statute turns out to be void, that should not affect the validity of the rest of it, and that that intention is to be ascertained from the terms of the statute.** It is the true nature of the subject-matter of the legislation that is the determining factor, and while a classification made in the statute might go far to support a conclusion in favour of severability, the absence of it does not necessarily preclude it."*

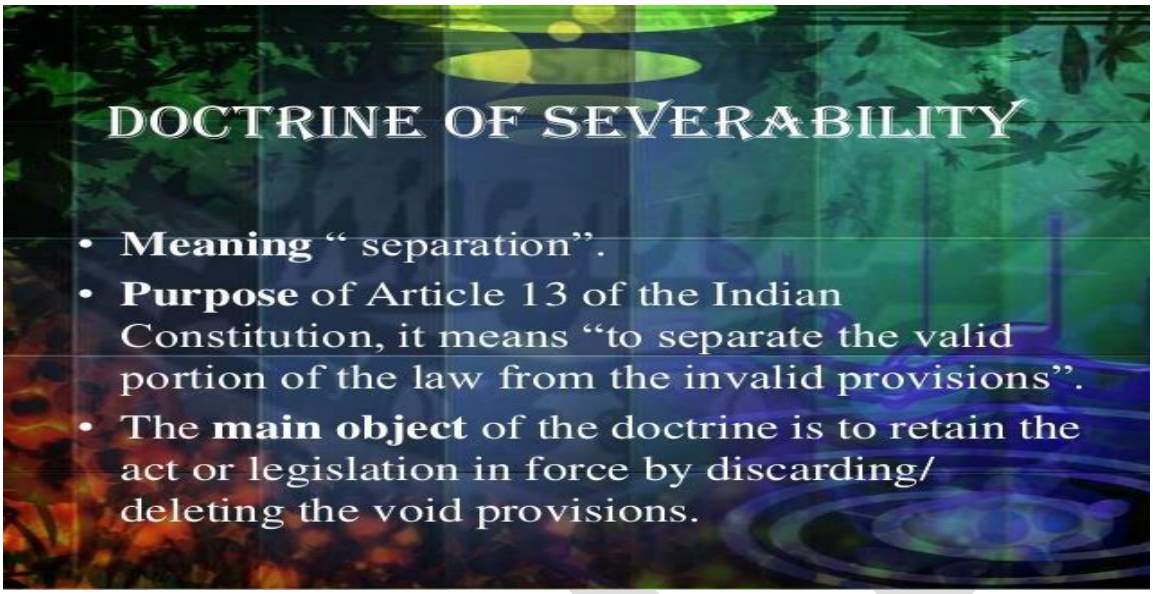
The court further said that:

*"**When a statute is in part void, it will be enforced as regards the rest, if that is severable from what is invalid.**"*

In the above-mentioned case, it was also said that:

*"Another significant canon of determination of constitutionality is that the Courts would be reluctant to declare a law invalid or ultra vires on account of unconstitutionality. **The Courts would accept an interpretation, which would be in favour of constitutionality rather than the one which would render the law unconstitutional**.*

The court can resort to reading down a law in order to save it from being rendered unconstitutional. But while doing so, it cannot change the essence of the law and create a new law which in its opinion is more desirable."



Following explanations are also relevant for the purpose of understanding the Doctrine of Severability and its application in complex legal situations.

1. **Cooley's Constitutional Limitations- A**. If the valid and invalid provisions are so inextricably mixed up that they cannot be separated from one another, then the invalidity of a portion must result in the invalidity of the Act in its entirety.

B. On the other hand, if they are so distinct and separate that after striking out what is invalid, what remains is in itself a complete code independent of the rest, then it will be upheld notwithstanding that the rest has become unenforceable.

2. **Crawford on Statutory Construction- Even when the provisions which are valid are distinct and separate from those which are invalid, if they all form part of a single scheme which is intended to be operative as a whole, then also the invalidity of a part will result in the failure of the whole**.

Applying the afore-stated principles and reasoning in the case of ***Suresh Kumar Koushal and another v. Naz Foundation and Others***, the court observed that while the High Court and the Supreme Court are empowered to review the constitutionality of Section 377 IPC and strike it down to the extent of its inconsistency with the Constitution, self-restraint must be exercised and the analysis must be guided by the presumption of constitutionality.

Hence, in the Naz Foundation Case, the court finally held that **unless a clear constitutional violation is proved, the Court is not empowered to strike down a law merely by virtue of its falling into disuse or the perception of the society having changed as regards the legitimacy of its purpose and its need**.

There are many important cases that have discussed about the **Doctrine of Severability**. Some of them are:

1. In the case of ***Kihoto Hollohan vs Zachillhu And Others***, it was said that the doctrine of severability envisages that if it is possible to construe a statute so that its validity can be sustained against a constitutional attack it should be so construed and that when part of a statute is valid and part is void, the valid part must be separated from the invalid part.

2. **Reading Down** – In the case of ***D.S. Nakara & Others v. Union of India***, the court said that whenever a classification is held to be impermissible and the measure can be retained by removing the unconstitutional portion of classification or by striking down words of limitation, **the resultant effect may be of enlarging the class**. In such a situation, the Court can strike down the words of limitation in an enactment. **That is what is called reading down the measure**.

3. The principles of severability was also discussed in the case of ***A. K. Gopalan v. State of Madras***, wherein the Court observed that what we have to see is, whether the omission of the

impugned portions of the Act will **"change the nature or the structure or the object of the legislation"**

Doctrine of Eclipse-

The doctrine of eclipse is based on the principle that a law which violates fundamental rights is not nullity or void ab initio but becomes only unenforceable. Such laws are not wiped out entirely from the statute book, they exist for all past transactions. This doctrine is not applicable to post constitutional laws.

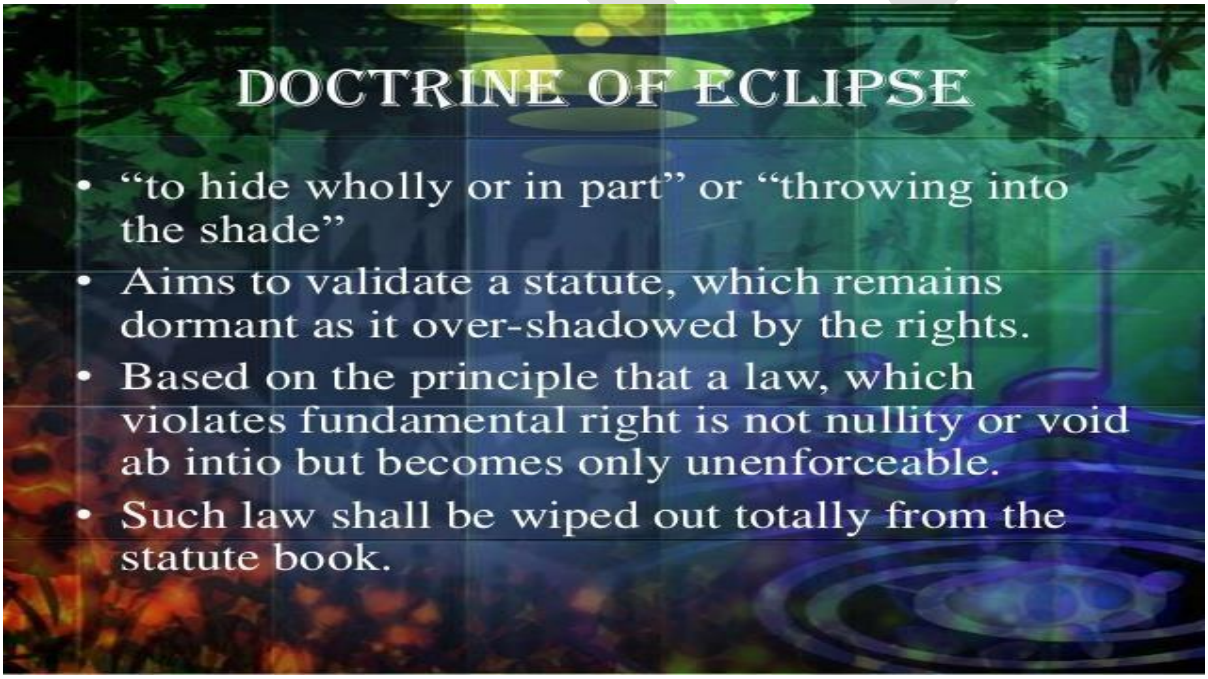
Origin –

Case- Bhikaji v. State of M.P. (AIR- 1955)

It has been held that a post constitution law, contravening a fundamental right would be ultra-virus the state and hence void ab initio.

Case- Deep Chand v. State of U.P (air- 1959)

The Supreme Court held that the doctrine of eclipse does not apply to post constitutional laws.



Doctrine of Waiver

Definition

The Doctrine of Waiver seems to be based on the premise that a person is his best judge and that he has the liberty to waive the enjoyment of such rights as are conferred on him by the state.

Black's Law Dictionary defines Waiver as ***"the voluntary relinquishment or abandonment (express or implied) of a legal right or advantage"***. It also says that the party alleged to have waived a right must have had both knowledge of the existing right and the intention of forgoing it.

Various Legal luminaries and scholars have also tried to explain the Doctrine of Waiver.

1. **William R. Anson** – The term waiver is one of those words of indefinite concoction in which our legal literature abounds; like a cloak, it covers a multitude of sins.

2. **Restatement (Second) of Contracts** – Waiver is often inexactly defined as the 'voluntary relinquishment of a known right'. When the waiver is reinforced by reliance, enforcement is often to rest on 'estoppel'. Since the more common definition of estoppel is limited to reliance on a misrepresentation of an existing fact, reliance on a waiver or promise as to the future is sometimes said to create a 'promissory estoppel'. The common definition of waiver may lead to the incorrect inference that the promisor must know his legal rights and must intend the legal effect of the promise. But it is sufficient if he has reason to know the essential facts.

3. **Farnsworth on Contracts** – Although it has often been said that a waiver is 'the intention relinquishment of a known right', this is a misleading definition. What is involved is not the relinquishment of a right and the termination of the reciprocal duty but the excuse of the non-occurrence of or delay in the occurrence of a condition of a duty.



American Conception of Doctrine of Waiver

In the famous case of ***Miranda v. Arizona***, the Supreme Court laid down certain requirements known as the **Miranda Rights**. These requirements include stipulations such as the right to remain silent and that they may have an attorney present questioning.

However, in USA, a Criminal Defendant may waive the right to remain silent as well as the other **Miranda Rights** and make a confession, but the Prosecution must demonstrate to the court that the 'waiver' was the product of a free and deliberate choice rather than a decision based on intimidation, coercion, force or deception. It must also be proved that the defendant was fully aware of the **Miranda rights** being abandoned and the consequences thereof.

Doctrine of Wavier in India

There have been plethora of cases that have discussed the doctrine of Waiver. Some of the important ones are.

1. ***Jaswantsingh Mathurasingh & Anr. v. Ahmedabad Municipal Corporation & Ors.***– In this case, the court said that everyone has a right to waive an advantage or protection which seeks to give him/her. For e.g. In case of a Tenant-Owner dispute, if a notice is issued and no

representation is made by either the owner, tenant or a sub-tenant, it would amount to waiver of the opportunity and such person cannot be permitted to turn around at a later stage.

2. ***Krishna Bahadur v. M/s. Purna Theatre & Ors.*** – This case made a differentiation between the principle of Estoppel and the principle of Waiver. The court said that *"the difference between the two is that whereas estoppel is not a cause of action; it is a rule of evidence; waiver is contractual and may constitute a cause of action; it is an agreement between the parties and a party fully knowing of its rights has agreed not to assert a right for a consideration"*.

The court also held that:

"A right can be waived by the party for whose benefit certain requirements or conditions had been provided for by a statute ***subject to the condition that no public interest is involved therein****. Whenever waiver is pleaded it is for the party pleading the same to show that an agreement waiving the right in consideration of some compromise came into being. Statutory right, however, may also be waived by his conduct."*

Doctrine of Waiver and Fundamental Rights in India

Fundamental Rights are the most special of the rights in Indian Context. These rights though sacrosanct are not absolute in nature. Our Constitution imposes various imposes various reasonable restrictions upon the exercise of fundamental rights.

As stated above, we saw that a right can be waived **subject to the condition that no public interest is involved therein**. However, the scope of the Doctrine of Waiver with respect to Fundamental rights is a bit different. It was discussed in the case of ***Basheshr Nath v. Income Tax commissioner***. The Court said that:

"Without finally expressing an opinion on this question we are not for the moment convinced that this Doctrine has any relevancy in construing the fundamental rights conferred by Part III

of our Constitution. ***We think that the rights described as fundamental rights are a necessary consequence of the declaration in the preamble that the people of India have solemnly resolved to constitute India into a sovereign democratic republic and to secure to all its citizens justice, social, economic and political; liberty, of thought, expression, belief, faith and worship; equality of status and of opportunity. These fundamental rights have not been put in the Constitution merely for the individual benefit though ultimately they come into operation in considering individual rights. They have been put there as a matter of public policy and the 'doctrine of waiver' can have no application to provisions of law which have been enacted as a matter of Constitutional policy.*** *Reference to some of the articles, inter alia, Articles 15(1) 20, 21, makes the proposition quite plain. A citizen cannot get discrimination by telling the State 'You can discriminate', or get convicted by waiving the protection given under Articles 20 and 21."*

We find that the primary objective of Fundamental Rights is based on Public Policy. Thus, individuals are not allowed to waive off such fundamental rights. Also, it is the constitutional mandate of the Courts to see that Fundamental Rights are enforced and guaranteed even if one might wish to waive them.

Q. Discuss the right to equality under Art- 14 of the Constitution.

Q. What is the Rule of Dicey? What are the exceptions to this rule?

Q. Article – 14 permits classification but prohibits class legislation. Discuss.

Article 14 of the constitution guarantee the right to equality to every citizen of India . It embodies the general principles of equality before law and prohibits unreasonable discrimination between persons. Article 14 embodies the idea of equality expressed in preamble.

Art- 14 –Right to Equality

Article 14 declares that 'the State shall not deny to any person equality before the law or equal protection of law within the territory of India.'. Thus article 14 uses the two expressions- **"equality before law"** and **"equal protection of law".** The phrase "equality before law" find a

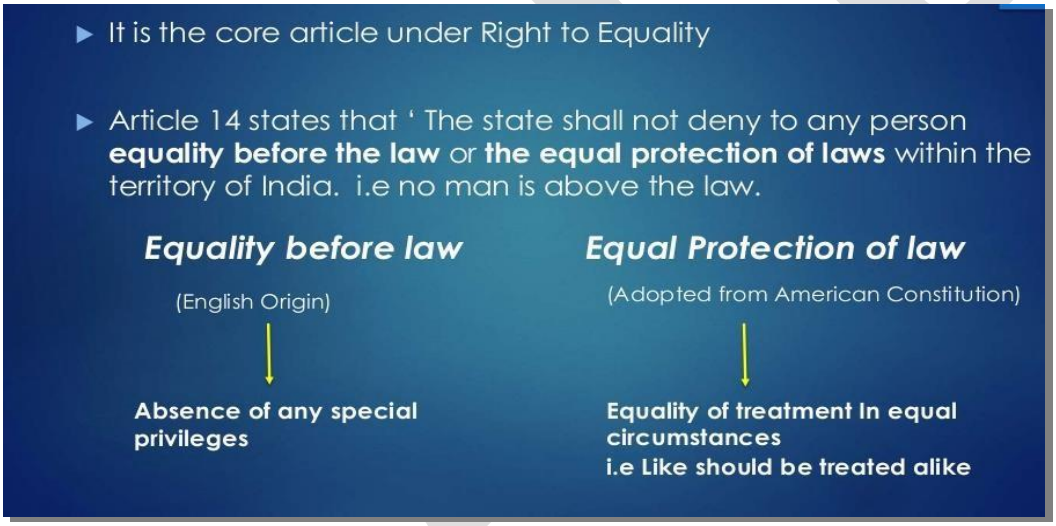
place in almost in written constitution that guarantees fundamental right both these expression .both this expression aim at establishing what is called "equality of status" While both the expression are kind of identical but they don't give similar meaning.

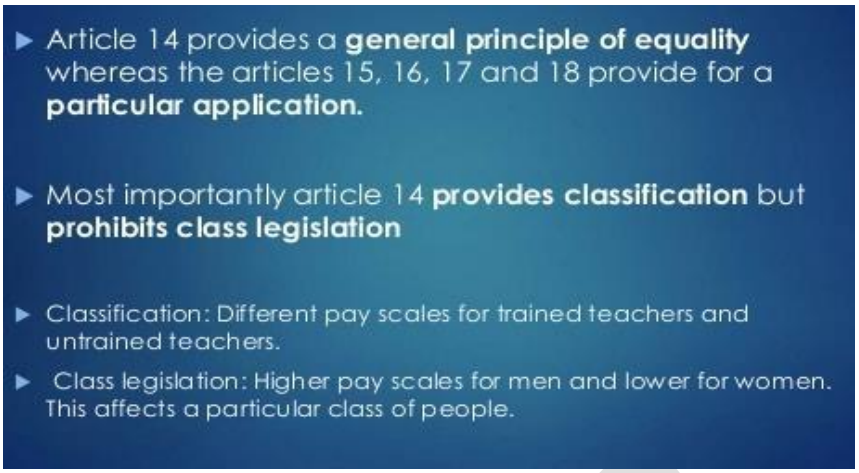
Equality before Law

Its origin is from America and somehow its negative concept. It aims at implying the absence of any special privilege by reason of birth, sex, religion etc in favor of individuals and the equal subject of all the classes to the ordinary law.

Equal protection of Law

Its origin is from British and somehow it is a positive concept. it aims at equality of treatment in equal circumstances. It means whether someone is P.M. or President he should be deal with same law as normal being deals with.





Rule of Law

The guarantee of equality before the law is an aspect of what **Dicey** calls the **Rule of Law** in England. It means that "**no man is above the law"** and that every person whatever be his rank or condition is subject to the jurisdiction of ordinary courts.

Rule of law require that no person shall be subjected to harsh, uncivilized or discriminatory treatment even when the object is the securing of the paramount exigencies of law and order.

Professor Dicey gave three meanings of the Rule of Law -

1. **Absence of arbitrary power or supremacy of the law**

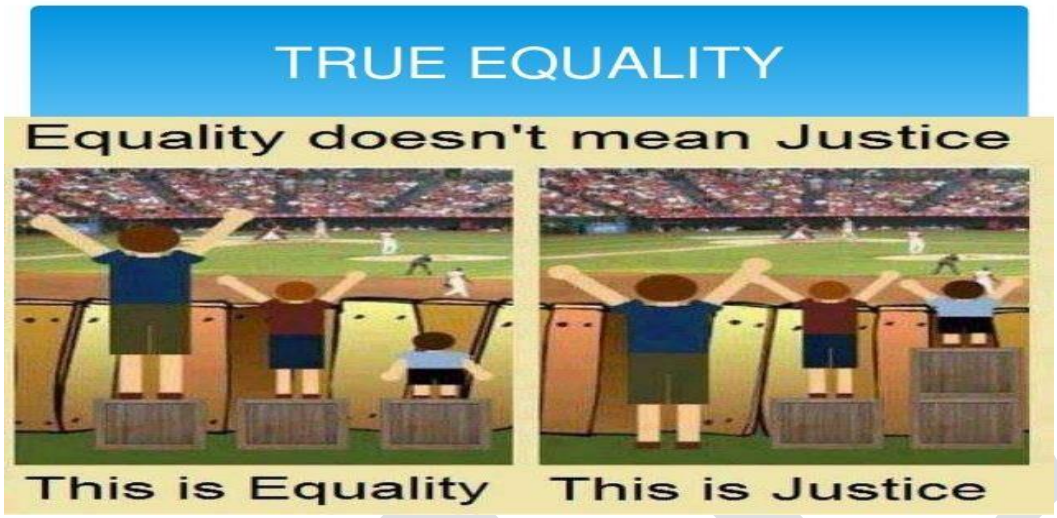
It means the absolute supremacy of law as opposed to the arbitrary power of the Government. In other words-a man may be punished for a breach of law, but he can't be punish for anything else.

2. **Equality before law**

It means subjection of all classes to the ordinary law of land administrated by ordinary law courts. This means that no one is above law all are equal in eyes of law

3. **Absence of individual liberty**

There are various constitution that provide individual liberty but not provide method It means that the source of the right of individuals is not the written constitution. U.K. don't have provision for individual liberty.



Rule of Law In India

1. Supremacy of Law:

The First meaning of the Rule of Law is that 'no man is punishable or can lawfully be made to suffer in body or goods except for a distinct breach of law established in the ordinary legal manner before the ordinary courts of the land. It implies that a man may be punished for a breach of law but cannot be punished for anything else. No man can be punished except for a breach of law. An alleged offence is required to be proved before the ordinary courts in accordance with the ordinary procedure.

2. Equality before Law:

The Second meaning of the Rule of Law is that no man is above law. Every man whatever be his rank or condition is subject to the ordinary law of the realm and amenable to the jurisdiction of the ordinary tribunals. Everybody under Article 14 is equal before law and have equal protection.

3. Individual Liberty

lot of individual liberty is mention like fundamental right in Article 21- protection of life and personal liberty, article 19- Right to freedom etc. and courts are their to protect individual liberty. The first and second aspect apply to Indian system but the third aspect of the Dicey's rule of law does not apply to Indian system as the source of right of individuals is the constitution of India. The constitution is the supreme law of the land and all laws passed by the legislature must be consistent with provisions of the constitution The rule of law impose a duty upon state to take special measure to prevent and punish brutality by police methodology. The rule of law embodied in article 14 is the basic feature of the Indian constitution and hence it can't be destroyed even by an amendment of the constitution under article 368 of the constitution.

Exception To Rule of Law

The above rule of equality is however not an absolute rule and there are number exception to it-

- Equality of Law' does not mean the power of the private citizens are the same as the power of the public officials. Thus a police officer has the power to arrest you while no other private person has this power. This is not violation of rule of law. But rule of law does require that these powers should be clearly defined by law and that abuse of authority by public officers must be punished by ordinary courts.
- The rule of law does not prevent certain class of persons being subject to special rules. Thus members of armed forces are controlled by military rules. Similarly medical practitioners are controlled by medical council of India
- Certain members of society are governed by special rules in their profession i.e. lawyers, doctors, nurses, members of armed forces and police. Such classes of people are treated differently from ordinary citizens.

Article 14 Permits Classification but Prohibits Class Legislation

The equal protection of laws guaranteed by Article 14 does not mean that all laws must be general in character. It does not mean that the same laws should apply to all persons. It does not attainment or circumstances in the same position. The varying needs of different classes of persons often requires separate treatment. From the vary nature of society there should be different laws in different places and the legitimate controls the policy and enacts laws in the best interest of the safety and security of the state. In fact identical treatment in unequal circumstances would amount to inequality. So a reasonable classification is only not permitted but is necessary if society is to progress.

Thus what Article 14 forbids is class-legislation but it does not forbid reasonable classification. The classification however must not be "arbitrary ,artificial or evasive" but must be based on some real and substantial bearing a just and reasonable relation to the object sought to be achieved by the legislation. Article 14 applies where equals are treated differently without any reasonable basis. But where equals and unequals are treated differently, Article 14 does not apply. Class legislation is that which makes an improper discrimination by conferring particular privileges upon a class of persons arbitrarily selected from a large number of persons all of whom stand in the same relation to the privilege granted that between whom and the persons not so favored no reasonable distinction or substantial difference can be found justifying the inclusion of one and the exclusion of the other from such privilege.

Test of Reasonable Classification

While Article 14 forbids class legislation it does not forbid reasonable classification of persons, objects, and transactions by the legislature for the purpose of achieving specific ends. But classification must not be "arbitrary,artificial or evasive". It must always rest upon some real upon some real and substantial distinction bearing a just and reasonable relation to

the object sought to be achieved by the legislation. Classification to be reasonable must fulfil the following two conditions

- ***Firstly the classification*** must be founded on the intelligible differentia which distinguishes persons or thing that are grouped together from others left out of the group
- ***Secondly the differentia*** must have a rational relation to the object sought to be achieved by the act.

The differentia which is the basis of the classification and the object of the act are two distinct things. What is necessary is that there must be nexus between the basis of classification and the object of the act which makes the classification. It is only when there is no reasonable basis for a classification that legislation making such classification may be declared discriminatory. Thus the legislature may fix the age at which persons shall be deemed competent to contract between themselves but no one will claim that competency. No contract can be made to depend upon the stature or colour of the hair. Such a classification will be arbitrary.

The true meaning and scope of Article 14 have been explained in a number of cases by the supreme court. In view of this the propositions laid down in ***Damia case*** *still hold good governing a valid classification and are as follows*.

1. 1.A law may be constitutional even though it relates to a single individual if on account of some special circumstances or reasons applicable to him and not applicable to others, that single individual may be treated as a class by itself
2. There is always presumption in favour of the constitutionality of a statute and the burden is upon him who attacks it to show that there has been a clear transgression of constitutional principles.
3. 3.The presumption may be rebutted in certain cases by showing that on the fact of the statue, there is no classification and no difference peculiar to any individual or

class and not applicable to any other individual or class, and yet the law hits only a particular individual or class

4. It must be assumed that Legislature correctly understand and appreciates the need of its own people that its law are directed to problem made manifest by experience and that its discrimination are based on adequate grounds
5. In order to sustain the presumption of constitutionality the court may take into consideration maters of common knowledge, matters of report, the history of the times and may assume every state of facts which can be conceived existing at the time of the legislation.
6. Thus the legislation is free to recognize degrees of harm and may confine its restriction to those cases where the need is deemed to be the clearest.
7. While good faith and knowledge of the existing conditions on the part of a legislature are to be presumed, if there is nothing on the face of the law or the surrounding circumstances brought to the notice of the court on which the classification may reasonable be regarded as based, the presumption of constitutionality cannot be carried to extent always that there must be some undisclosed and unknown reason for subjecting certain individuals or corporation to be hostile or discriminating legislation
8. The classification may be made on different bases e.g. geographical or according to object or occupation or the like.
9. The classification made by the legislature need not be scientifically perfect or logically complete.Mathematical nicety and perfect equality are not required. Equality before the law does not require mathematical equality of all persons in all circumstances. Equal treatment does not mean identical treatment. Similarly not identity of treatment is enough.
10. There can be discrimination both in the substantive as well as the procedural law. Article 14 applies to both. If the classification satisfies the test laid down in the above propositions, the law will be declared constitutional. The question whether a classification is reasonable and proper and not must however, be judged more on commonsense than on legal subtitles.

Case

D.S. Nakara v. Union of India

The Government issued an office memorandum announcing a liberalized pension scheme for retired government servants but made it applicable to those who had retired after 31 March 1979. The supreme court held that the fixing of the cut off date to be discriminatory as violating Article 14. The devision of pensioners into two classes on the basis of the date of retirement was not based on any rational principle because a difference of two days in the matter of retiremnt could have a traumatic effect on the pensioner. Such a classification held to be arbitrary and unprincipled as there was no acceptable or persuasive reason in its favour. The said classification had no rational nexus with the object sought to achieved.

Conclusion

What article 14 forbids is discrimination by law that is treating persons similarly circumstanced differently and treating those not similarly circumstanced in the same way or as has been pithily put treating equals as unequals and unequals as equals. Article 14 prohibits hostile classification by law and is directed against discriminatory class legislation.

- It is well settled that Article 14 forbid classification for the purpose of legislation. It is equally well settled that in order to meet the test of Article 14 classification must be based on intelligible differentia which distinguishes persons or things that are grouped together from those that are left out of group and
- the differentia must have a rational nexus to the objects sought to be achieved by the executive or legislative action under challenge.

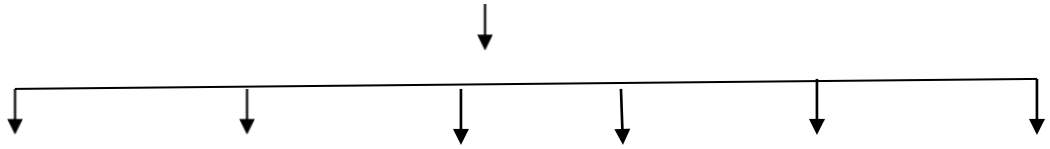
Article 14 contains a guarantee of equality before law to all persons and protection to them against discrimination by law. It forbids class legislation.

Q. Explain the term "Socially and Educationally Backward Class" as used in Art- 15 of the Constitution.

Ans: Art-15 provides for a particular application of the general principle embodied in Art-14. Just as the principle of classification applies to Art-14 so it does Art-15(1) as well. The combined

effect of Art 14 & is not that the state cannot pass unequal laws, but if it does pass unequal laws, the inequality must based on some reasonable ground.

Art-15(1) state shall not make any discrimination among the citizen on the grounds of



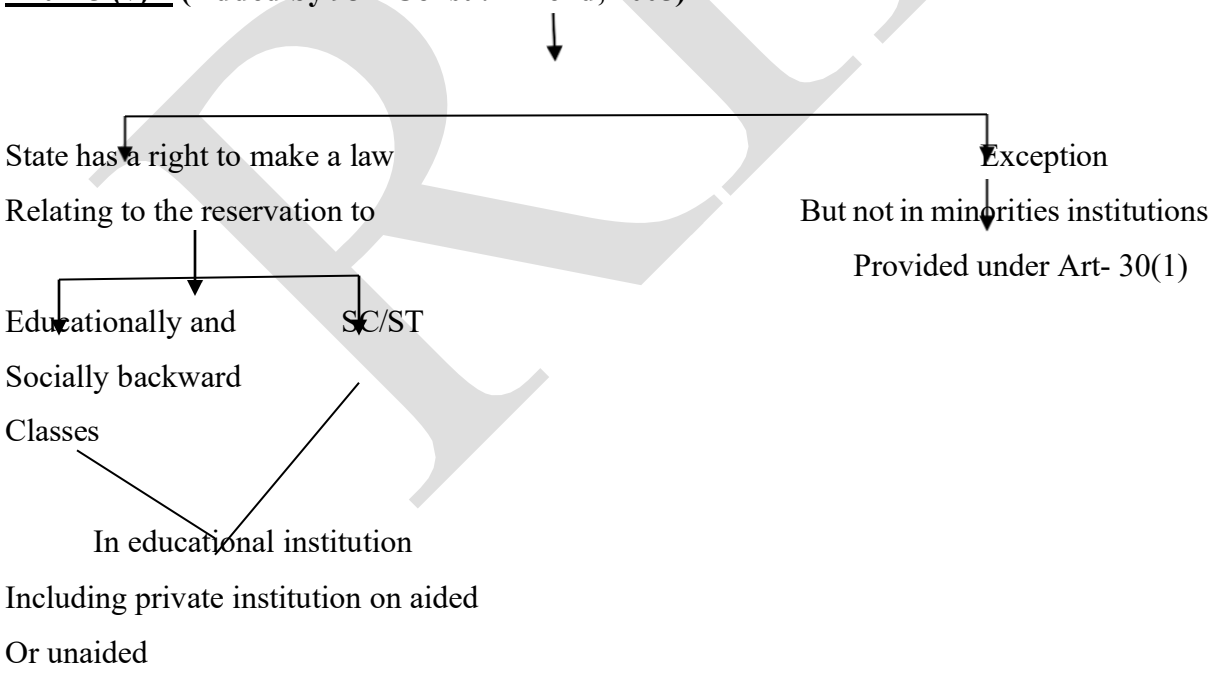
Religion Race Caste Sex Place of birth or any of them

Art-15(ii) on the basis of Art-15(1) no one can restrict on public place.

Art - 15 (iii) state shall not prudent for making any special provision for women & children.

Art- 15 (IV) state shall not prudent for making any special provision for educational and social background classes of citizen or for the SC/ST. (Added by 1st Constitutional Amendment, 1951)

Art- 15 (v) – (Added by 93rd Consti. Amend, 2005)



Art15 (1):

Case - Nainsuphdas V/S State of U.P. (AIR-1953)

A law which provided form elections on the basis of separate electorates for members of different religious communities was held to be unconstitutional.

Art – 15 (3) Special provision for women and children :

Case - Yusuf Abdul Aziz V/S state of Bombay (AIR -1954)

SEC- 497 of I.P.C which only punishes man for actually and exempts the women from punishment even though she may be equally guilty as on abettor was held to be valid since the classification was not based on the ground of sex alone.

Case - Shamsher Sing V/s State of Punjab (AIR-1970)

The court held that only such provisions in favor of women can be made U/ Art- 15(3), which are reasonable, and not altogether obiliterate or render illusory the constitutional guarantee enshrined in Art- 16(2).

Art- 15 (4) – Special provision for advancement of backward classes:-

This clause has been added by the 1st Constitutional Amendment Act, 1951 by the case

Case: - State of Madras v. Champkam Dorairajan

In this case the Madras govt. had reserved the seats in State Medical and engineering colleges for different communities in certain proportions on the basis of religion , race and caste. The State defended the law on the ground that it was enacted with a view to promote the social justice for all sections of the people as required by Art- 46 of Directive Principles of State Policy. The Supreme Court held that the law void because it classified students on the basis of caste and religion. Directive Principles of State Policy cannot override Fundamental rights. As a result of this decision Art- 15 has been amended by the 1st amendment.

Case :- Balaji v. State of Mysore –AIR- 1963)

The Court held that the sub classification made by the order between ‘ backward classes’ and ‘more backward classes’ was not justified under Art- 15 (4), because it was made solely on caste without regard to other relevant factors.

After the enactment of the 1st Constitutional amendment of 1951, Balaji was the 1st case which came before the Supreme Court.

Position after Balaji Case:-

Case:-Chitralekha v. State of Mysore (AIR- 1964)

In this case a family whose income was less than Rs. 1,200 per yearand which followed such occupations as agriculture, petty business, inferior services, crafts etc. would be treated as 'backward' was declared to be valid.

Case:- Valsamma Paul v. Coachin University (AIR- 1996))

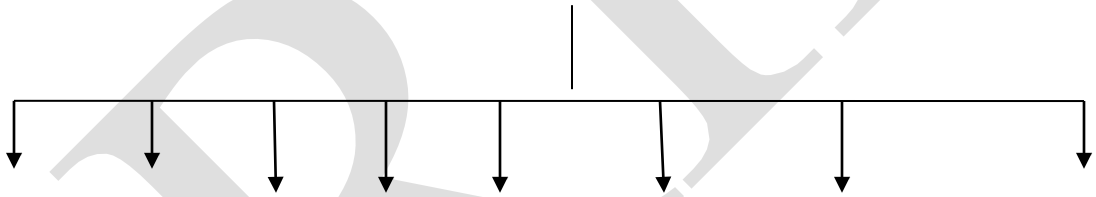
Case:- Dr. Neelima v. Dean of PG. Studies A.P. Agriculture University Hydrabad (AIR-1993)

It has been held that if a female of high caste marrying a boy belonging to SC/ST is not entitled to the benefitof reservation available to ST/ST.

Q. Discuss the provisions relating to the equality of opportunity in the matters of public employment under Indian Constitution.

Equality of opportunity in matters of public employment

State shall not make any discrimination among the citizens on the ground of



Religion Race Caste Sex Descent Residence Place of birth Any of them

Art- 16 guarantees equality of opportunity in matters of appointment in State services. It does not however prevent from prescribing the necessary qualifications and selective test recruitment for govt. services.

Matters of Employment

1. Service Conditions :-

Under Art- 309 rules regulating service conditions of govt. servants can be made by the govt. but such rules have to stand the tests of Art- 14 and 16 and, thus, have to be reasonable and fair and not grossly unjust.

2. Appointment :-

Case: - Nagpur Improvement Trust v. Yadarao Jaggannath Kumbhare

It has been held that appointments can be made under executive power if no statutory service rules have been made.

Case: - Dr. Pradeep Kumar Jain v. UOI (AIR- 1984)

Under Art- 16 (2) residential requirement will be unconstitutional as a condition of eligibility for employment or appointment to an office under the State or its instrumentality.

3. Compassionate Appointment:-

Case:- Balbir Kaur v. Steel Authority of India Ltd.

Appointment on compassionate grounds of a son , daughter or widow to assist the family to relieve economic distress because of the sudden demise in hardness of a govt. servant has been held to be valid.

4. Promotions:-

Case :- UOI v. S.L. Dutta (AIR- 1991)

A right to be considered for promotion is a term of service, chances of promotions are not.

5. Seniority :-

Difficult question arise from time to time regarding fixation of inter se seniority in a cadre. Seniority is governed by service rules. No one has a vested right to seniority but an employee has an interest in seniority acquired by working out the rules. It can be taken away only by the operation of law.

Case:- R.M. Mokashi v. I.M.Menon (AIR- 1982)

The rules formulated regarding seniority should be reasonable, just and equitable.

6. Compulsory retirement :-

Case:- Shiv Charan Singh v. State of Mysore (AIR- 1965)

Provision for compulsory retirement of govt. servant in public interests does not infringe Art- 14 and 16.

7. Retirement:-

Case:- K. Nagraj v. State of Andhra Pradesh (AIR- 1985)

The age of superannuation was reduced from 58 to 55 yrs by amending the service rules. The Supreme Court ruled that service rules can be amended under Art- 309.

Equal pay for equal work

Case:- Randhir Singh v. UOI (AIR- 1982)

It has been held that equal pay for equal pay for equal work although not expressly declared to be a fundamental right is clearly a constitutional under Art- 14, 16 and 39 (c) of the constitution and can be enforced by the courts.

Exceptions to Art- 16(1) and 16(2):-

1. **Art- 16 (3):-**

   Under Art- 16(3), Parliament may make a law to prescribe a requirement as to residence within a State or Union territory for eligibility to be appointed with respect to specified number of appointments or posts.

   Case:- A.V.S.Narsimha Rao v. State of Andhra Pradesh (AIR-1970)

   The Supreme Court declared that part of the of the Act unconstitutional which prescribed a residence qualification for govt. services in Telangana – a part of the State of Andhra Pradesh.

2. **Art- 16 (5):-**

   Art- 16(5) provides that the incumbent of an office in connection with the affairs of any religious or denominational institution or any member of the governing body thereof shall be a person professing a particular religion or belonging to a particular denomination.

3. **Art- 16 (4):-**

   Under Art- 16 (4), the State may make any provision for the reservation of appointments or posts in favor of any 'backward class' of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

   Case: - State of U.P. v. Pradip Tondon (AIR- 1975)

   It has been emphasized that the expression "Backward Class" is not synonymous with "backward caste" or "backward community". In determining whether a section of population forms a backward class for purposes of Art- 16 (4), a test solely based on caste, community, race, religion, sex, descent, place of birth or residence can not be adopted because it would directly be violative of Art- 16 (2).

   Case: - Balaji v. State of Mysore

The Supreme Court has held that caste of a person cannot be the sole test for ascertaining whether a particular class is a backward class or not. Poverty, occupation, place of habitation may all be relevant factors to be taken into consideration.

Case :-Devdasan v. UOI (AIR-1964)

In this case the constitutional validity of "Carry forward rule" in services was involved. The Supreme Court by a majority of 4 to 1 struck down the carry forward rule as unconstitutional on the ground that the power vested in govt. under Art- 16 (4) could not be exercised so as to deny reasonable equality of opportunity in matters of public employment for members of classes other than backward.

Case:- Indira Sawhney v. UOI (Mandal Commission)

It has been held that the "Carry forward rule" valid so long as it does not in a particular year exceed 50% of vacancies. The 50% limit can only be exceeded in an extraordinary situation prevailing in a State. The Court examined the scope and extent of Art- 16 (4) in detail and clarified various aspects on which there were difference of opinion in various earlier judgement.

It may be summarized as follows-

1. Backward Class of citizen in Art- 16(4) can be identified on the basis of caste and not only on the basis of caste and not only on economic basis.
2. Art- 16 (4) is not an exception to Art- 16 (1). It is not an instance of classification. Reservation can be made under Art- 16 (1).
3. Backward classes in Art- 16 (4) are not similar to as socially and educationally backward in Art- 15 (4).
4. Creamy layer must be excluded from backward classes.
5. Reservation can be made by executive order.
6. Reservation shall not exceed 50%.
7. No reservation in promotions.

Q: Freedom of Speech and Expression

Introduction:

"Give me the liberty to know, to utter, and to argue freely according to conscience, above all liberties".

-John Milton

Freedom of Speech and expression means the right to express one's own convictions and opinions freely by words of mouth, writing, printing, pictures or any other mode. In modern time it is widely accepted that the right to freedom of speech is the essence of free society and it must be safeguarded at all time. The first principle of a free society is an untrammeled flow of words in an open forum. Liberty to express opinions and ideas without hindrance, and especially without fear of punishment plays significant role in the development of that particular society and ultimately for that state. It is one of the most important fundamental liberties guaranteed against state suppression or regulation.

Meaning & Scope:

Article 19(1)(a) of the Constitution of India guarantees to all its citizens the right to freedom of speech and expression. The law states that, "all citizens shall have the right to freedom of speech and expression". Under **Article 19(2)** "reasonable restrictions can be imposed on the exercise of this right for certain purposes. Any limitation on the exercise of the right under **Article 19(1)(a)** not falling within the four corners of **Article 19(2)** cannot be valid.

It is important to note that a restriction on the freedom of speech of any citizen may be placed as much by an action of the State as by its inaction. Thus, failure on the part of the State to guarantee to all its citizens irrespective of their circumstances and the class to which they belong,

The fundamental right to freedom of speech and expression is regarded as **one of the most basic elements of a healthy democracy for it allows its citizens to participate fully and effectively in the social and political process of the country.** In fact, the freedom of speech and expression

gives greater scope and meaning to the citizenship of a person extending the concept from the level of basic existence to giving the person a political and social life.

This right is available only to a citizen of India and not to foreign nationals. This right is, however, not absolute and it allows Government to frame laws to impose reasonable restrictions in the interest of sovereignty and integrity of India, security of the state, friendly relations with foreign states, public order, decency and morality and contempt of court, defamation and incitement to an offence.

In the Preamble to the Constitution of India, the people of India declared their solemn resolve to secure to all its citizen liberty of thought and expression. The Constitution affirms the right to freedom of expression, which includes the right to voice one's opinion, the right to seek information and ideas, the right to receive information and the right to impart information. The Indian State is under an obligation to create conditions in which all the citizens can effectively and efficiently enjoy the aforesaid rights.



- Freedom of speech and expression; [19(1) (a), 19(2)]
- h Freedom to assemble peaceably and without arms; [19(1) (b), 19(3)]
- b Freedom to form association or union; [19(1) (c) 19(4)]
- a Freedom to move freely throughout the territory of India; [19(1) (d), 19(5)]
- f Freedom to reside and settle in any part of territory of India; [19(1) (e), 19(6)]
- e Freedom to practice any profession, or to carry on any occupation, trade or business. [19(1) (f), 19(7)]

In ***Romesh Thappar v State of Madras*** **(AIR 1950 SC 124),** the Supreme Court of India held that the freedom of speech and expression includes freedom to propagate ideas which is ensured by freedom of circulation of a publication, as publication is of little value without circulation. **Patanjali Sastri, J.,** rightly observed that-

'Freedom of Speech and of Press lat at the foundation of all democratic organizations, for without free political discussion no public education, so essential for the proper functioning of the process of Government, is possible'

The phrase "speech and expression" used in **Article 19(1) (a)** has a broad connotation. **This right includes the right to communicate, print and advertise the information.** In India, **freedom of the press** is implied from the freedom of speech and expression guaranteed by **Article 19(1)(a)**. The freedom of the press is regarded as a "**species of which freedom of expression is a genus**"[ii]. On the issue of whether 'advertising' would fall under the scope of the Article, the Supreme Court pointed out that the right of a citizen to exhibit films is a part of the fundamental right of speech and expression guaranteed by **Article 19(1)(a)** of the Constitution.

Under the provisions of Indian law, the right to invoke the freedom of speech argumentsis not limited to individuals alone. Corporations are also entitled to invoke sucharguments. The cases of ***Bennet and Coleman & Co. v. Union of India*** (1973) 2 SCR 757 and I***ndian Express Newspapers (Bombay) P. Ltd v. Union of India*** ('86) A.SC. 515, are of great significance. In these cases, the corporations filed a writ petition challenging the constitutional validity of notifications issued by the Government. After much deliberation, the Courts held that the right to freedom of speech cannot be taken away with the object of placing restrictions on the business activities of citizens. However, the limitation on the exercise of the right under **Article 19(1)(a)** not falling within the four corners of **19(2)** is not valid.

In ***Maneka Gandhi v. Union of India,*** **BHAGWATI J.,** has emphasized on the significance of the freedom of speech & expression in these words:

"Democracy is based essentially on free debate and open discussion, for that is the only corrective of government action in a democratic set up. If democracy means government of the people by the people, it is obvious that every citizen must be entitled to participate in the democratic process and in order to enable him to intelligently exercise his rights of making a choice, free & general discussion of public matters is absolutely essential."

This position was reiterated by the Court in Secretary, Ministry of Information and Broadcasting, ***Govt. of India v. Cricket Association of Bengal***32 wherein it was held that **Article 19(1)(a)** includes the right to acquire and disseminate information. The Supreme Court, while opining on the right to freedom of information, further noted in Dinesh Trivedi, ***M.P. and Ors v. Union of India***33 that "in modern constitutional democracies, it is axiomatic that citizens have a right to know about the affairs of the government which, having been elected by them, seek to formulate sound policies of governance aimed at their welfare."

We can see the guarantee of freedom of speech under the following heads:

Freedom of Press

Although **Article 19** does not express provision for freedom of press but the fundamental right of the freedom of press implicit in the right the freedom of speech and expression. In the famous case ***Express Newspapers (Bombay) (P) Ltd. v. Union of India*** court observed the importance of press very aptly. Court held in this case that "In today's free world freedom of press is the heart of social and political intercourse. The press has now assumed the role of the public educator making formal and non-formal education possible in a large scale particularly in the developing world, where television and other kinds of modern communication are not still available for all sections of society. The purpose of the press is to advance the public interest by publishing facts and opinions without which a democratic electorate [Government] cannot make responsible judgments. Newspapers being purveyors of news and views having a bearing on public administration very often carry material which would not be palatable to Governments and other authorities."

Obscenity

Obscenity in India is defined as "offensive to modesty or decency; lewd, filthy and repulsive." It stated that the test of obscenity is whether the publication, read as a whole, has a tendency to deprave and corrupt those whose minds are open to such immoral influences, and therefore each work must be examined by itself .

With respect to art and obscenity, the Court held that "the art must be so preponderating as to throw obscenity into a shadow or the obscenity so trivial and insignificant that it can have no effect and may be overlooked ." The Court concluded that the test to adopt in India, emphasizing community mores, is that obscenity without a preponderating social purpose or profit cannot have the constitutional protection of free speech.

Right to Information

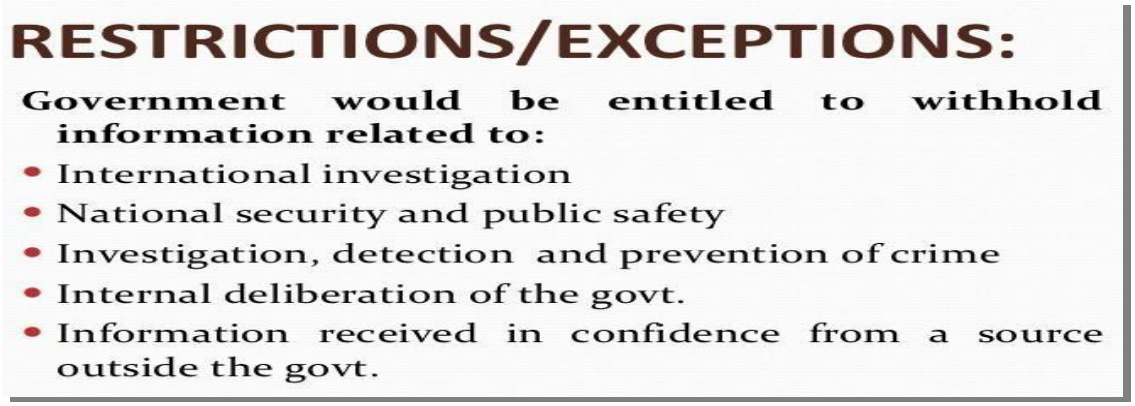
Right to know, to information is other facet of freedom of speech. The right to know, to receive and to impart information has been recognized within the right to freedom of speech and expression. A citizen has a fundamental right to use the best means of imparting and receiving information and as such to have an access to telecasting for the purpose. The right to know has, however, not yet extended to the extent of invalidating **Section 5** of the **Official Secrets Act**, 1923 which prohibits disclosure of certain official documents. Even, **Right to Information Act** 2005, which specially talks about peoples' right to ask information from Government official, prohibits discloser of certain documents under u/s 8 of the Act. These exceptions are generally the grounds of reasonable restrictions over freedom of speech and expression under **Article 19(1)** of **Constitution** of India. One can conclude that 'right to information is nothing but one small limb of right of speech and expression.

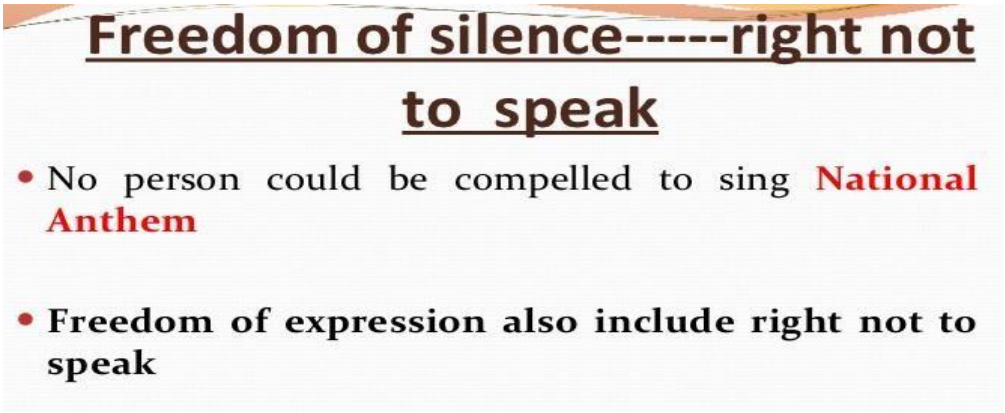
Voters Have Right to Know About their Candidates

In a landmark judgment in ***Union of India v. Association for Democratic Reforms***4, a three-judge bench held that the amended Electoral Reforms Law passed by Parliament is unconstitutional as being volatile of citizen's right to know under **Art. 19(1)(g)**.

The' Freedom of Speech and Expression' Is Indeed A Very High One

In recent judgment of the Supreme Court in ***Khushboo v. Kannaiammal*** upholds the right to freedom of speech and expression. Khushboo's right to freedom of speech was violated by the institution of multiple criminal cases against her in various courts across the country and consequent harassment that she suffered.





Conclusion:

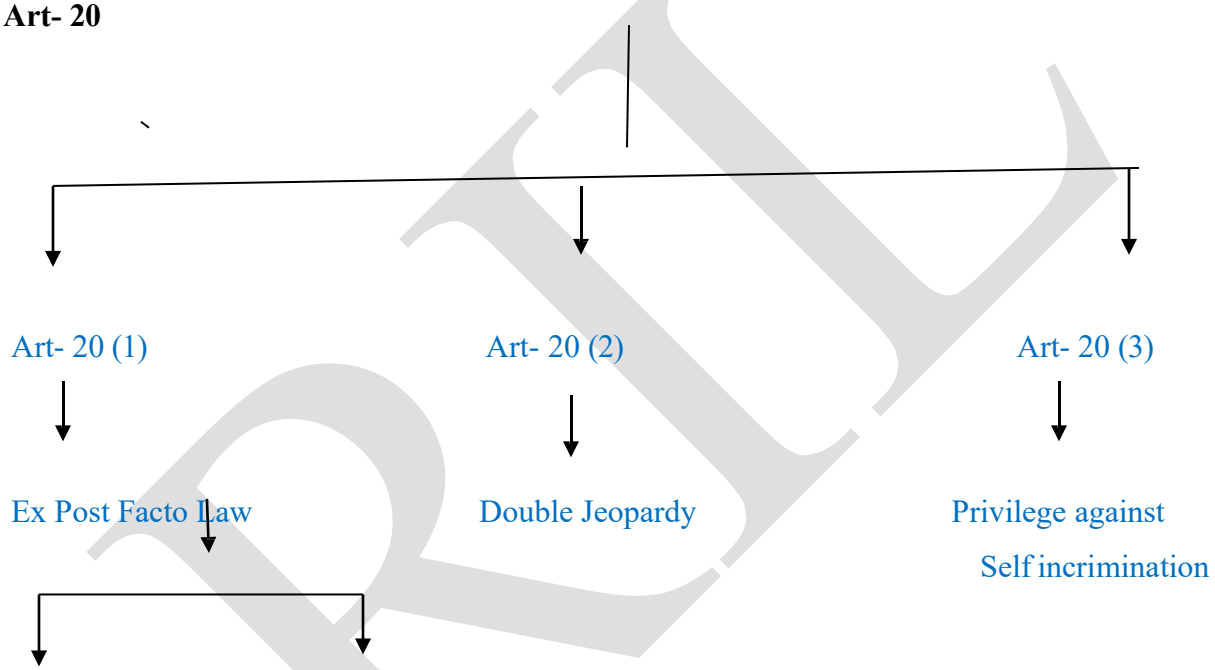
Expression through speech is one of the basic guarantees provided by civil society. However in modern world Right to freedom of speech and expression is not limited to express ones' view through words but it also includes circulating one's views in writing or through audiovisual instrumentalities, through advertisements and through any other communication channel. It also comprises of right to information, freedom of press etc. It is a right to express and self realization.

Freedom of speech and expression is the bulwark of democratic government. This freedom is essential for the proper functioning of democratic process and is regarded as the first condition of liberty. It occupies a preferred position in the hierarchy of liberties giving protection to all other liberties. It has been truly said that it is the mother of all other liberties. That liberty include the right to acquire information and disseminate the same. It includes the right to communicate it

through available media without interference to as large a population of the country, as well as abroad, as is possible to reach. Right to know is the basis right of the citizens of a free country and **Art. 19(1)(a)** protects that right. Right to receive information springs from **Art 19(1)(a).**

Q. Discuss the provisions relating to the protection in respect of conviction for offences under Indian Constitution.

Art- 20



RU

Protection against Ex- Post Facto Law:-

An Ex- Post facto law is a law which imposes penalties retrospectively i.e. an Act already done and increases the penalty for acts. The American Constitution also contains a similar provision prohibiting Ex- Post facto laws both by the Central and State legislature.

1. **Art-20 (1) First Para:-**

   No person shall be convicted of any offence except for violation of 'law in force' at the time of the commission of the act charged as an offence. This means that if an act is not an offence at the date of its commission, it can not be an offence at the date subsequent to its commission.

   Case:- Pareed Lubha v. Nilambaram (AIR- 1967)

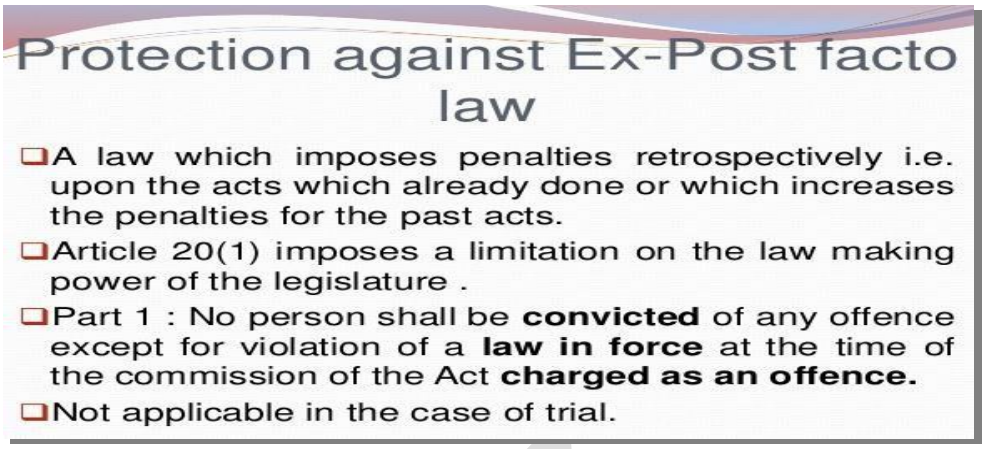
   It was held that if the non – payment of the Panchayat Tax was not an offence on the day it fell due, the defaulter could not be convicted for the commission to pay under a law passed subsequently even if it covered older dues.

2. **Art- 20 (1) Second Part:-**

   The Second part of Art- 20 (1) immunizes a person from a penalty greater than what he might have incurred at the time of his committing the offence.

   Case :- Kedar Nath v. State of Bengal (AIR- 1983)

   The accused committed an offence in 1947, which under the act than in force was punishable by imprisonment of fine or both. The Act was amended in 1949 which enhanced the punishment for the same offence by an additional fine equivalent to the amount of money procured by the accused through the offence. The Supreme Court held that the enhanced punishment could not be application to the act committed by the accused in 1947 and hence set aside the additional fine imposed by the amended act.

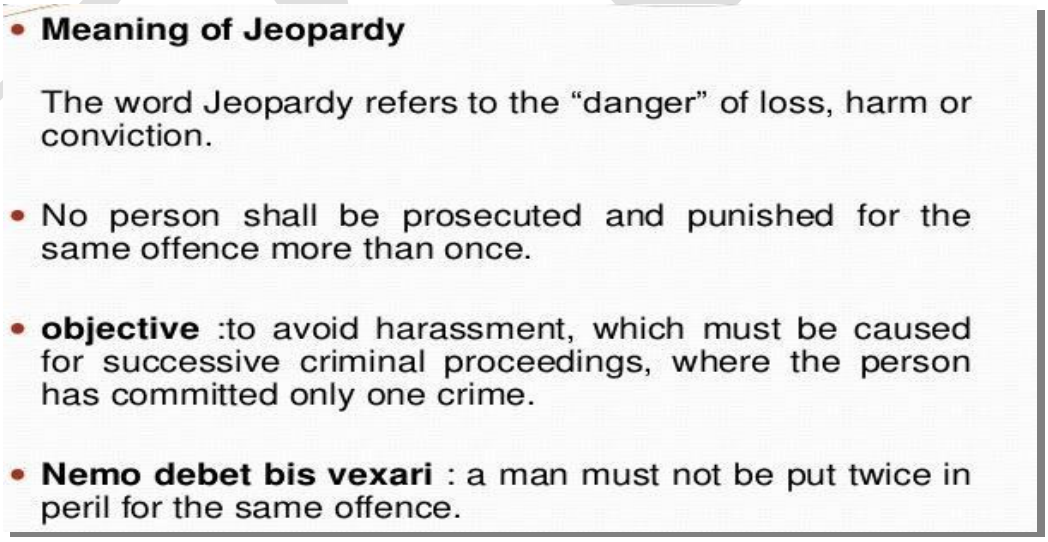


Guarantee against Double Jeopardy

Principle of Double Jeopardy:- (Art- 20 (2):-

The roots of the doctrine of the double jeopardy are to be found in the well – established maxim of the English Common Law, **Nemo debit vis vexari** Which means that no man shall be put twice in peril for the same offence.

When a person has been convicted for an offence by a competent court, the conviction serves as a bar to any further criminal procedures against him for the same offence.



Essentials of Art- 20 (2):-

1) The person must be accused of an offence.

2) The proceeding or prosecution must have taken a place before a "court" or "judicial tribunal"
3) The person must have been "prosecuted and punished" in the previous proceedings.
4) The offence must be the same for which he was prosecuted and punished in the previous proceedings.

Case: - State of Bihar v. Murad Ali Khan (AIR-1989)

The Court held that if there are two distinct and separate offences with different ingredients under two different enactments, a double punishment is not barred.

Case :- Maqbool Hussain v. State of Bombay (AIR- 1953)

The Court held that the sea customs authorities were not a court or judicial tribunal. It did not constitute a judgement of judicial character necessary to take plea of the double jeopardy.

Prohibition against Self – incrimination:- Art- 20 (3):-

No person accused of any offence shall be compelled to be a witness against himself. It is the duty of the prosecution to prove the offence. The accused need not make any admission or statement against his own free will.

Essentials of Art- 20 (3)

Case :- M.P. Sharma v. Satish Chandra (AIR- 1954)

The Supreme Court observed that this right embodies the following essentials –

a) It is a right pertaining to a person who is "accused of an offence."
b) It is a protection against compulsion to be witness.
c) It is a protection against such compulsion relating to his giving evidence against himself.

a) Accused of an offence-

A person is said to be an accused person against whom a formal accusation relating to the commission of an offence has been leveled what in normal course may result in his prosecution and conviction.

b) To be a witness-

Case :- M.P. Sharma v. Satish Chandra (AIR- 1954)

The Supreme Court interpreted the expression "to be a witness" very widely so as to include oral documentary and testimonial evidence.

Case :- State of Bombay v. Kathi Kalu (AIR- 1961)

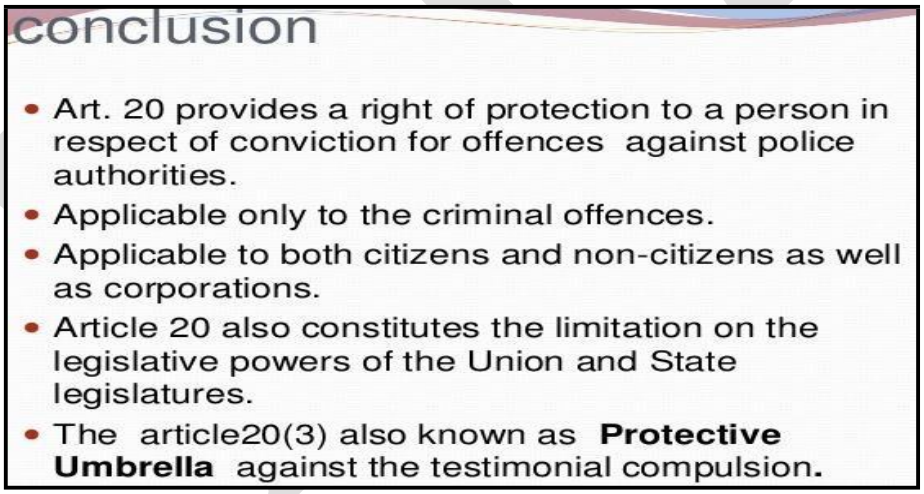
The Supreme Court held that the interpretation of the phrase "to be a witness" given in Sharma's Case was too broad and required a qualification. To be a witness is not equivalent to furnish evidence that is to say as including not merely making of oral or written statements but also production of documents or giving materials which may be relevant at a trial to determine the guilt or innocence of the accused.

c) <u>Compulsion to give evidence against himself-</u>

The protection under Art- 20(3) is available only against the compulsion of accused to give evidence "against himself."

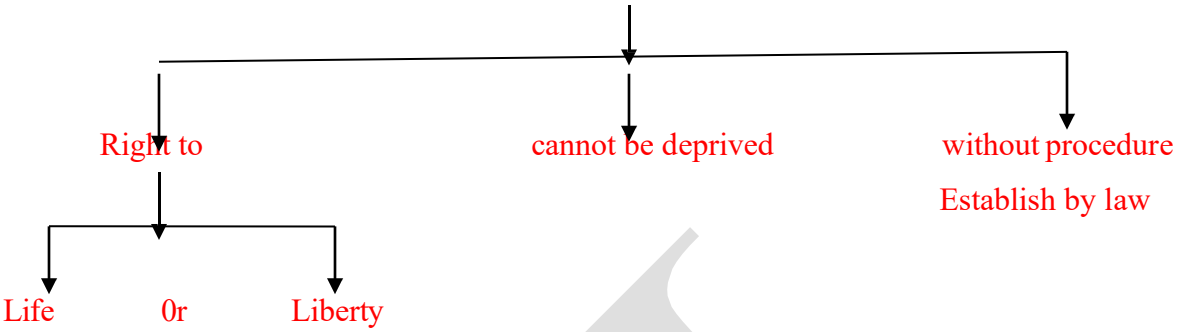
Case :- Yusufali v. State of Maharashtra (AIR- 1968)

A tape- recorded statement made by the accused though made without knowledge of the accused but without force or oppression was held to be admissible in evidence.



Q: - "No person shall be deprived of his life or personal liberty except according to the procedure established by law". Discuss.

Art- 21



No person shall be deprived of his life or personal liberty except according to procedure established by law. (Art- 21)

Personal Liberty:-

Case :- A.K. Gopalan v. UOI (AIR- 1950)

The Supreme Court by the majority held that the personal liberty in Art- 21 means nothing more than the liberty of the physical body, that is freedom from arrest and detention without the authority of law. In this case the Supreme Court interpreted the law as 'State made law'.

Case:- Kharak Singh v. State of U.P. (1963)

It was held that personal liberty was not only limited to bodily restraint or confinement to prisons only but includes all the varieties of rights which go to make up the personal liberty of a man other than those dealt within Art- 19 (1).

Case :- Maneka Gandhi v. UOI (AIR- 1978)

The Supreme Court has widened the scope of 'personal liberty' and held that- "The expression personal liberty in Art- 21 is of the widest amplitude and covers a variety of rights which go to constitute the personal liberty of man and some of them have raised to the status of distinct fundamental rights and given additional protection under Art- 19"

The Court said that the provision relating to fundamental rights should be interpreted widely. Bhagwati J. said-

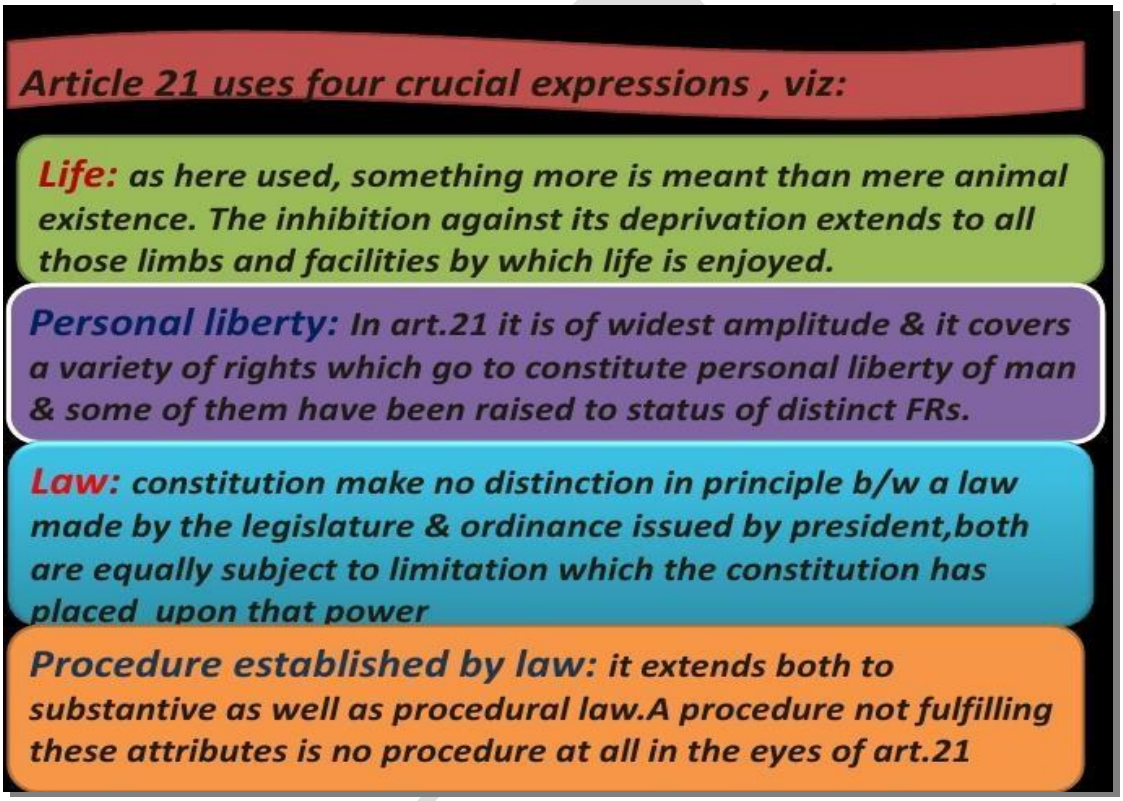
"The attempt of the court should be to expand the reach and ambit of the fundamental rights rather than to attenuate their meaning and content by a process of judicial construction"

The Court lays down great stress on the procedural safeguards. The procedure must satisfy the requirement of natural justice. It must be just, fair and reasonable.

Application of the word "Procedure established by law" or due process of law:-

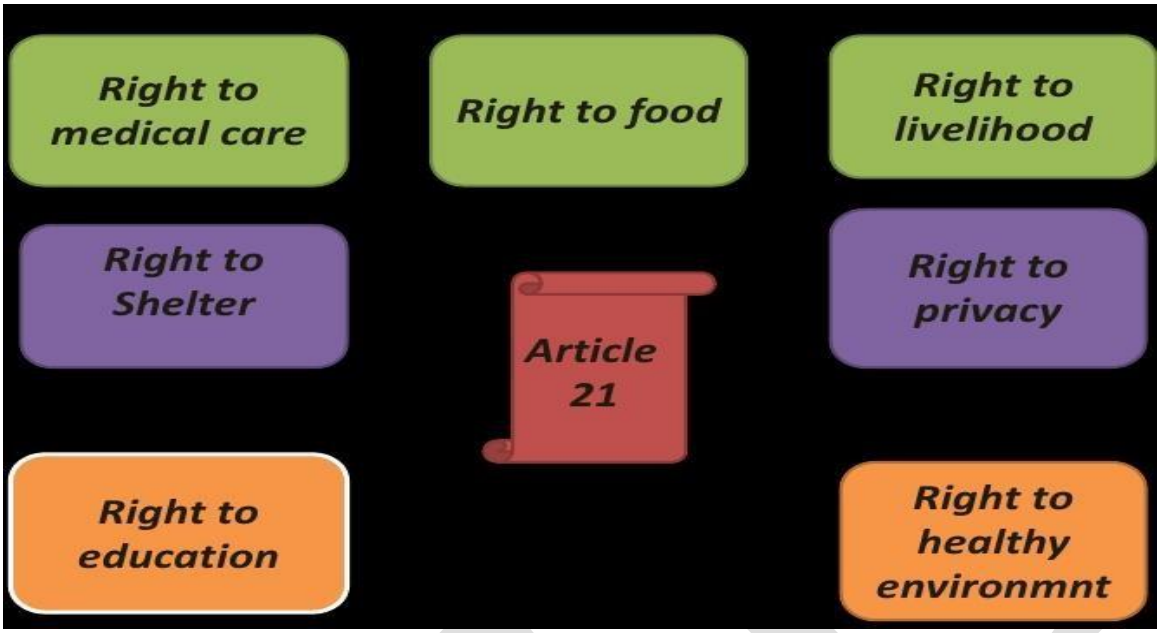
Case :- A.K.Gopalan v. UOI

In this case the Supreme Court held that the word used under- Art- 21 is procedure established by law. If any procedure has been established by any law and by using that procedure a person has been deprived from the right to life and personal liberty. Hence it can not be challenged on the base whether it is justified or not.



Case :- Maneka Gandhi v. UOI (AIR- 1978)

In this particular case if the procedure adopted does not follow the principle of natural justice. It can not be said that the procedure established by law is constitutional.



Upto what extent Art- 21 apply :-

Right to travel:-

Case:- Satwant Singh Sahani v. Assitant Passport Officer, New Delhi (AIR-1967)

In this case it was held that right to go abroad is also a right protected under Art- 21.

Right to livelihood:-

Case:- Olga Tellis v. Bombay Munciple Corporation

Right to livelihood is an integral part of right to life but acquisition of property in according to procedure would not amount to removal of the right to livelihood.

Right to live with human dignity:-

Case:- Maneka Gandhi v. UOI

The Court held that the right to live is not merely confined to physical existence but it includes within its ambit the right to live with human dignity.

Right to health and medical assistance:-

Case:- Parmanand Katara v. UOI (AIR- 1989)

To get the doctor's assistance is also a right protected under Art- 21 because health is an integral part of life.

Right to free legal aid :-

Case:- M.H. Hoskot v. State of Maharashtra (AIR- 1978)

Right to get free legal aid is also protected under Art- 21.

Right to die:-

Case:- Maruti Sreepati Dubal v. UOI

Case:- P. Rathinaam v. UOI

Right to life includes the right to die.

Case:- Gian Kaur v. State of Punjab (AIR- 1996)

Right to life is a natural right provided under Art- 21 but suicide is an unnatural extinction of life and therefore it does not include right to death.

Right to get pollution free water and air:-

Case:- Sunil Batra v. Delhi Administration (AIR – 1978)

Solitary confinement imposed upon prisoners was violative of Art- 14, 19, 20 & 21 of the Constitution.

Right to speedy trial:-

Case:-Hussainara Khatoon v. Home Secretary, State of Bihar (AIR- 1979)

The Court held that the right to speedy trial flowing from Art- 21 is available to accused at all stages namely the stage of investigation, inquiry, trial, appeal, revision and retrial.

Right against handcuffing:-

Case:- Prem Shankarv. Delhi Administration (AIR- 1980)

The Court held that handcuffing is prima facie inhuman and therefore unreasonable, is overharsh and at the first flush arbitrary.

Right against inhuman treatment:-

Case:- Kishore kumar v. State of Rjasthan (AIR- 1981)

The Supreme Court held that the use of "third degree" method by police is violative of Art- 21and directed the Govt. to take necessary steps to educate the police so as to inculcate a respect for human being.

Right to get education:-

Case:- Mohini Jain v. State of Karnataka (AIR- 1992)

Right to get higher education is a fundamental right protected under Art- 21.

Case:- Unni Krishnan Swami v. State of Andhra Pradesh (AIR-1993)

In this case the Supreme Court held that to receive the education upto primary stage is also the necessary part to live a life with dignity and it is also protected by Art- 21 of the Constitution.

The Right Against Exploitation in the Constitution of India

Q. Discuss the right against exploitation provided under Indian Constitution.

The Rights against Exploitation is provided under Articles 23 and 24 of the Constitution of India. Right to personal liberty is never real if some people are exposed to exploitation by others. Arts. 23 and 24 of the constitution are designed to prevent exploitation of men by men. Thus rights ensured by these two articles may be considered as complimentary to the individual rights secured by Arts. 19 and 21 of the constitution.

Article 23 of the Indian Constitution reads as follows :

i. "Traffic in human beings and beggar and similar other forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law."
ii. "Nothing in this article shall prevent the state from imposing compulsory service for public purposes and in imposing such service the state shall not make any discrimination on grounds only of religion, race, caste of class or any of them."

Ever since the dawn of civilization in every society, the stronger exploited the weak. Slavery was the most prevalent and perhaps the cruelest form of human exploitation. Our constitution does not explicitly forbid slavery. The scope of Article 23 is far wide. Any form of exploitation is forbidden. Thus forcing the landless labour to render free service by the land-owner is unconstitutional. Equally, forcing helpless women into prostitution is a crime. The intention of the constitution is that whatever a person does must be voluntary. There must not be any element of coercion involved behind a man's action.

The state however may call upon citizens to render national service in defence of the country. Thus conscription is not unconstitutional. But in compelling people to render national service, the state must not discriminate on grounds of race, sex, caste or religion.

Art. 24 forbids **employment of child-labour in factories or in hazardous works**. The art. reads "*No child below the age of fourteen years, shall be employed to work in any factory or mine or, engaged in any other hazardous employment.*"

In an environment of all pervading poverty, children are often forced to seek employment to earn a living. Employers often find it less costly to engage child labour at a cheap price. But children so employed do not get opportunities for development. Thus, employment of child labor is a form of traffic in human beings. Hence it is justifiably forbidden. But employment of child labor cannot be effectively checked unless there is overall improvement of economic conditions of the poorer sections of the society. This provision of the constitution remains a pious wish even today.

Freedom of Religion (Art- 25- 28)

Q. Describe the provisions related to the freedom of religion in India under the Constitution of India.

Introduction- Art- 25 to 28 deal with the fundamental rights relating to freedom of religion. These rights are guaranteed to all persons and not merely to citizens. India is a secular state and all religions enjoy the same constitutional protection without any discrimination.

What is religion

The term "religion" has not been defined in the Constitution of India. The Supreme Court has observed that religion is a matter of faith with individuals or communities. Religion is not necessarily theistic. No doubt religion has its basis in a system of beliefs or doctrines which are regarded by those who profess that religion is conducive to their spiritual well being but it is not correct to say that it is nothing else but a doctrine or belief. The religion, thus, may lay down a code of ethical rules for its followers to accept and also prescribe rituals, ceremonies and modes of worship which are regarded as integral parts of religion**.** ***Commr. H.E.R. v. L.T. Swamiar, AIR 1954 SC 282.***

Ambit of Freedom of Religion.

I. Freedom of conscience and the right to profess, practise and propagate religion (Article 25).

II. Freedom to manage religious affairs (Article 26).

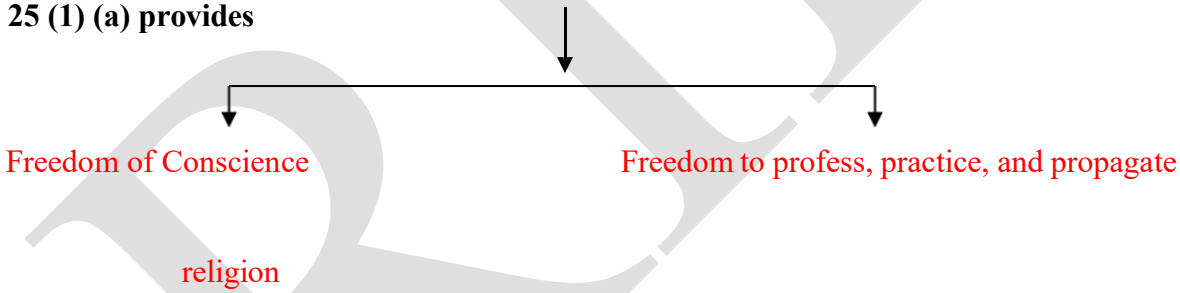
III. Freedom to payment of taxes for promotion of any particular religion (Art. 27).

IV. Freedom as to attendance at religious worship in certain educational institutions (Article 28).

1. Freedom of conscience and the right to profess, practise and propagate religion (Article 25).

Art- 25 (1) guarantees to every person, and not only to the citizens of India, the freedom of conscience and the right freely to profess, practice and propagate religion subject to public order, health, morality and other provisions of Part- III of the Constitution.

Art- 25 (1) (a) provides



Art- 25 (1) (b) lays down that State may make any law providing for social welfare and reform or throwing open of Hindu religious institutions of a public character to all classes and sections of Hindus.

The freedom of conscience is absolute inner freedom of the citizen to mould his own relation with God whatever manner he likes. When this freedom becomes articulated and expressed in outward form, it is "to profess and practice religion."

To Profess means – to declare freely and openly one's faith and belief. He has a right to practice his belief by practical expression in any manner he likes.

To Practice religion is to perform the prescribed religious duties, rites and rituals, and to exhibit his religious beliefs.

2. Freedom to manage religious affairs (Rights of Religious Denomination). (Article 26)

Article 25 confers the particular right on all persons while Article 26 is confined to religious denominations on any section thereof. Article 26, thus, guarantees certain rights to every religious denomination or any section thereof, however, the rights so guaranteed are subject to public order, morality and health.

(i) Right to establish and maintain institutions for religious and charitable purposes.—According to Article 26(a) every religious denomination and a section thereof, shall have right to establish and maintain institutions for religious and charitable purposes. The words "establish and maintain" should be read conjunctively and consequently, the right to maintain the institution can be claimed only by the religious denomination which has established or brought into existence the institution.

Right to maintain the institute includes the right to administer it.

Right to establish and maintain educational institution has been conferred by Article 26(a) on every religious denomination or section thereof, be it of majority religious community or of minority religious community. This Article, thus, confers the right to establish and maintain educational institution on every religious denomination or section thereof including the majority religious community. Therefore, the religious denomination or sections thereof which do not fall within the special categories carved out of Articles 29(1) and 30(1) have the right to establish and maintain religious and educational institutions. Under Article 26(a), thus, the religious denomination of the majority religious community has right to establish and maintain educational institution but this right is subject to public order, morality and health.

(ii) Right to manage its own affairs in matters of religion. — According to Article 26(b) every religious denomination or any section thereof has the right to manage its own affairs in matters of religion and the State cannot interfere in these affairs, unless it exercises its right so as to interfere with public order, morality or health.

(iii) Right to own, acquire and administer property.—Clauses (c) and (d) of Article 26 provide that subject to public order, morality and health every religious denomination or a section thereof shall have the right to own and acquire movable or immovable property and also the right to administer such property according to law.

Articles 25 and 26—Difference

Article 25 confers the particular right on all persons, while Article 26 guarantees certain rights only to religious denomination or a section thereof. Article 26 is subject to public order, morality and health while Article 25 is subject to public order, morality and health and also subject to the other provision relating to the fundamental rights.

3. Freedom as to payment of taxes for promotion of any particular religion. (Article 27)

According to Article 27, no person shall be compelled to pay any taxes, the proceed of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination.

If places of worship are destroyed due to communal riot and the State grants money so as to restore these places to the pre-riot condition, it cannot be said that the State is making payment for the promotion of a particular religion or religious denomination and consequently such grant by the State will not be violative of Article 27

4. Freedom as to the attendance at religious worship in educational institutions. (Article 28).

Article 28 mentions three types of educational institutions :

(i) Educational institutions wholly maintained out of State funds.-Article 28 makes it clear that no religious instruction shall be provided in any educational institution wholly maintained out of State funds.

Article 28 prohibits religious instruction and it does not prohibit moral education dissociated from any doctrine of religious denomination. Provisions for the academic study of the life, teaching and philosophy of any great saint of India and their impact on the Indian and world civilisation cannot be regarded as provision for religious instruction. Religious instruction should be taken to mean the instruction which is imparted for inculcating the tenets, the rituals, the observances, ceremonies and modes of worship of a particular sect or denomination.

(ii) Educational institutions administered by the State but established under any endowment or trust.—Article 28 does not prohibit religious instructions in the educational institution administered by the State but established under any endowment or trust which requires that religious instruction shall be imparted in the institution.

(iii) Educational institutions recognised the State or receiving aid out of the State fund.—No person attending any educational institution recognised by the State or receiving aid out of State funds shall be required to take part in any religious instruction that may be imparted in such institution or to attend any religious worship that may be conducted in such institution or in any premises attached thereto under such person or if such person is minor, his guardian has given his consent thereto.

In ***Aruna Roy v. Union of India***, the Supreme Court has held that the entire emphasis of Article 28 is against imparting religious instruction or performing of religious worship. There is no prohibition for having study of religious philosophy and culture, particularly for having value based social life in a society which is degenerating for power, post or property. The National Curriculum Frame-work for School Education pertaining to education for value development is neither violative of Article 28 nor it brings secularism to peril. It is wrong presumption and contention that the knowledge of different religions would bring disharmony in the society. On the contrary, knowledge of various religious philosophy is material for bringing communal harmony as ignorance breeds hatred because of wrong notions, assumption, preaching and propaganda by misguided interested persons. Making the students aware of that the essence of every religion is common and only practices differ cannot be taken as violative of Article 28.

Restrictions

1. **Public Order, Morality and Health.—**Freedom of religion guaranteed by Article 25 is subject to public order, morality and health. Preventing a person is not violative of Article 25. Its reason is that forcible conversion may disturb the public order and therefore it may be prohibited in the interest of public order. In ***Ghulam Abbas v. State of U.P.,(1984)*** Supreme Court held that shifting of a property connected with religion to avoid clashes between two religious communities is valid and does not affect religious rights being in the interest of public in general.

2. Other provisions relating to the Fundamental Rights.—Freedom of religion guaranteed by Article 25 is subject to the other provisions relating to the Fundamental Rights.

3. Regulation of economic, financial, political and secular activities.—The provision of Article 25 shall not affect the operation of any existing law or prevent the State from making any law regulating or restricting any economic, financial, political or other secular activity which may be associated with religious practice.The secular activity which may be associated with religious may be regulated by the State.

In ***Sarla Mudgal v. Union of India*****,** Justice Kuldip Singh has observed that marriage, succession and like matters of a secular character cannot be brought within the guarantee enshrined under Articles 25, 26 and 27.

In ***M.P. Gopalkrishnan Nair v. State of Kerala*****,** the Supreme Court has made it clear that management of temple is a secular act and it can be controlled by the State. No doubt, State cannot interfere with the freedom of person to profess, practice and propogate his religion but the secular activities connected therewith may be controlled by the State.

4. Social Reform, Social Welfare and throwing open of Hindu religious institutions.—The provisions of Article 25 do not affect the operation of any existing law or prevent the State from making any law providing for social welfare and reform or the throwing open of Hindu religious institution of a public character to all classes and sections of Hindus. For this purpose the word "Hindu" includes Sikhs, Jams or Buddhists.

Art- 29-30

Q. Discuss the safeguards provided under Indian Constitution relating to the protection of minorities.

Introduction- Treating un-equals as equal is as bad as treating equals as un-equals. Our Constitution provides for equality for equality of opportunity to all but meting out equal treatment to those who did not start off equally in the first place means treating un-equals as equals. Minorities in India have had to face adverse discrimination and, therefore, do not stand on equal footing with others, which made the framers of the Constitution, through Article 29 and Article 30, accord special rights to the people who form religious or linguistic minority in India.

Article 29 and 30 of the Indian Constitution lay down the provision relating to "Cultural and Educational Rights of Minorities". Article 29 and 30, which provide for the protection of interests of minorities and Right to establish and administer educational institution s respectively read as follows:

Article 29:- Protection of Interests of Minorities:-

1. Any section of the citizens residing in the territory of India or any part thereof having a district language, script or culture of its own shall have the right to conserve the same.
2. No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

Article 30: Rights of Minorities to establish and administer Educational Institutions:

1. All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.

2. In making any law providing for the compulsory acquisition of any property of an educational institution established and administered by a minority, referred to in Clause (1), the State shall ensure that the amount fixed by or determined under such as would not restrict or abrogate the right guaranteed under that clause. (Clause 1A to Art. 30 was inserted by the Constitution (Forty-fourth AmendmentAct,1978).

3. The State shall not, in granting aid to educational institutions, discriminate against any educational institution on the ground that it is under the management of a minority whether based on religion or language.

The term 'minority' is not defined in the Constitution. **In re the Kerala Education Bill,** the Supreme Court observed that while it was easy to say that the minority meant a community which was numerically less than 50% is not in relation to the entire legislation. If it is a State law, a minority would be determined in relation to the population of the State. Where a law passed by the purpose of Article 29 and 30 would be determined by reference to the entire

population of that State. Accordingly, it was held in re Kerala Education Bill, that Christians, Muslims and Anglo Indians would be minorities in the State of Kerala.

The expression 'linguistic minority' for the purpose of Art. 30(1) is one which must have separate spoken language and that language need not have a district script. In India, a number of languages are spoken having no script of their own. But people speaking such a language having no script of their own. But people speaking such a language having no script of its own constitute a linguistic minority for the purposes of Article 30(1). A linguistic minority is to be determined with reference to the language spoken by the community and not with reference to any other language which the community wants it children to study.

The expression 'religion minority' means 'that the only and principal basis of the minority must be adherence to one of the many religions and not a sect or part of the religion. Jains and Sikhs have been held to be minorities based on religion within the meaning of Article 30(1) in the Union Territory of Delhi.

Right to conserve language, script or culture (Article 29(1):- Clause (1) of Article 29 provides: "Any section of the citizen residing in the territory of India or any part thereof having a district language, script of culture of its own shall have the right to conserve the same".

The "right to conserve" means the right to preserve and the right to maintain. The right to conserve one's own language, script of culture, thus, means and includes the right to preserve and to maintain own language, script or culture. It includes the right to preserve and maintain own language, script or culture. It includes the right to work for one's own language, script or culture and to agitate for the same. The right contained in Article29(a) may be exercised by setting up educational institutions and by imparting instructions to the children of their own community in their own language.

In *D.A.V. College, Bhatinala v. State of Punjab, AIR 1971 SC 1731*

The Punjab University was established at Patiala under the Punjab University Act, 1961. After the reorganization of the State of Punjab in 1969, the Punjab Government issued a Notification

providing for the compulsory affiliation of all the colleges situated within the area under the jurisdiction of the Punjab University, Patiala. Thereafter, the University issued the impugned circular to all the affiliated colleges requiring them to introduce Punjab in Gurmukhi script as the Court struck down the circular as well a examinations. The Supreme Court struck down the circular as violative of the right of the petitioner to conserve their script and language and to administer their institutions in their own way.

Right of Minorities to establish and manage Educational Institutions:- Article 30(1) guarantees to all linguistic and religious minorities the 'right to establish' and the 'right to administer' educational institutions of their own choice. The word 'establish' indicates the right to bring into existence, while the right to administer an institution means the right to effectively manage and conduct the affairs of the institution. Thus, it leaves it to the choice of the minority to establish such educational institution as will serve both purposes, namely, the purpose of conserving their religion, language or culture, and also the purpose of giving through general education to their children in their own language.

Clause (2) of Article 30 prohibits the State from making discrimination in the matter of grant of aid to any educational institution on the ground that it is managed by a religious minority or linguistic minority.

Q. Describe the relation between Fundamental Rights and Directive Principles of State of Policy.

The directive principles differ from fundamental rights in respect that while fundamental rights are justifiable. Directive Principles are non – justifiable. Fundamental Rights are enforceable by the court but directive principles are not.

Case- State of Madras v. Champkam Dorairajan (AIR- 1951)

It was held that in case of any conflict between fundamental rights , nevertheless in determining the scope and ambit of fundamental rights, the court may not entirely ignore the directive

principles but should adopt the principle of harmonious construction and should attempt to give effect to both as much as possible.

Case- Keshvanand Bharti v. State of Kerala (AIR-1978)

Fundamental Rights and Directive Principles aim at the same goal of bringing about a social revolution and establishment of a welfare State and they can be interpreted and applied together. They are supplementary and complementary to each other.

Case- Unni Krishnan v. State of Andhra Pradesh (AIR- 1993)

The Supreme Court held that the fundamental rights and directive principles are supplementary and complimentary to each other and the provisions in part III should be interpreted havindg regard to the preamble and directive principles to the state policy.

Case- Mohini Jain v. State of Karnataka

Every citizen has right to education under the constitution. It is the duty of the state to establish educational institutions to enforce this right. Charging capitation fee is a violation of a citizen's right to education.

Difference between Fundamental Rights and Directive Principles of State Policy-

The main difference between the fundamental rights and directive principles of State policy is that – Fundamental Rights are enforceable by the courts. Individual can move to the court seeking legal assistance if fundamental rights are usurped by force. On the other hand directive principles of state policy are not enforceable and no one can go to the court to compel the State for their proper implementation.

Priority in case of controversy or conflict between Fundamental Rights and Directive Principles of State Policy-

Case- State of Madras v. Srimathi Champkam

Justice Das stated that directive principles were expressly made unenforceable by Art- 37 and therefore can not override the fundamental rights found in Part III, which were enforceable pursuant to Art- 32. The court opined that fundamental rights are sacrosanct and could not be curtailed by the directive principles. In the case of conflict part – III would prevail over part- IV.

Constitutional Amendment-

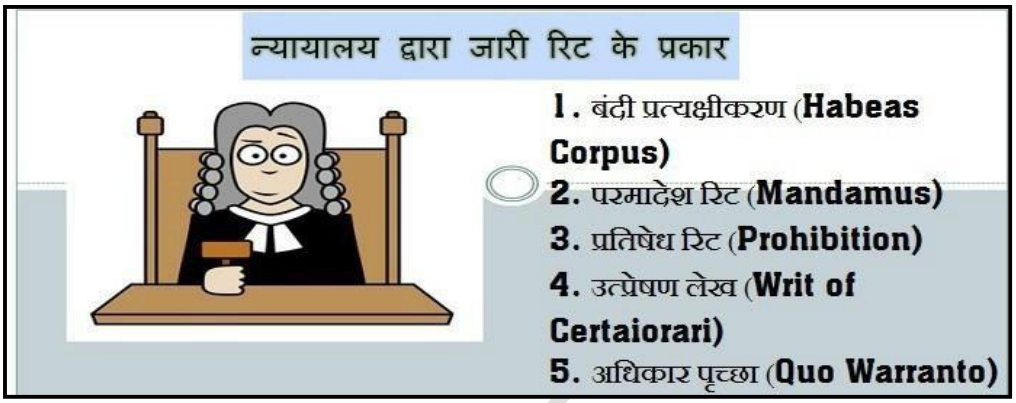
Art- 31C was added by the Constitution 25th Amendemnt, 1971. Art- 31C provides that no law which is intended to give effect to the directive principles contained in Art- 39 (b) & (c) shall be deemed to be void on the ground that it is inconsistent with or takes away or abridges any of the right conferred by Art- 14 or 19.

Q: Writ jurisdiction?

The supreme court, and High courts have power to issue writs in the nature of habeas corpus , quo warranto , mandamus , certiorari ,prohibition etc., under Arts. 32 and 226 respectively. These writs have been borrowed in India from England where they had a long chequered history of development and consequently have gathered a number of technicalities. Power to issue writs is primarily a provision made to make available the Right to Constitutional Remedies to every citizen . The right to constitutional remedies as we know is a guarantor of all other fundamental rights available to the people of India. In addition to the above , the constitution also provides for the parliament to confer on the supreme court power to issue writs , for the purpose other than those mentioned above. Similarly High courts in India are also empowered to issue writs for the enforcement of any of the rights conferred by Part III and for any other purpose.

Types of Writs:

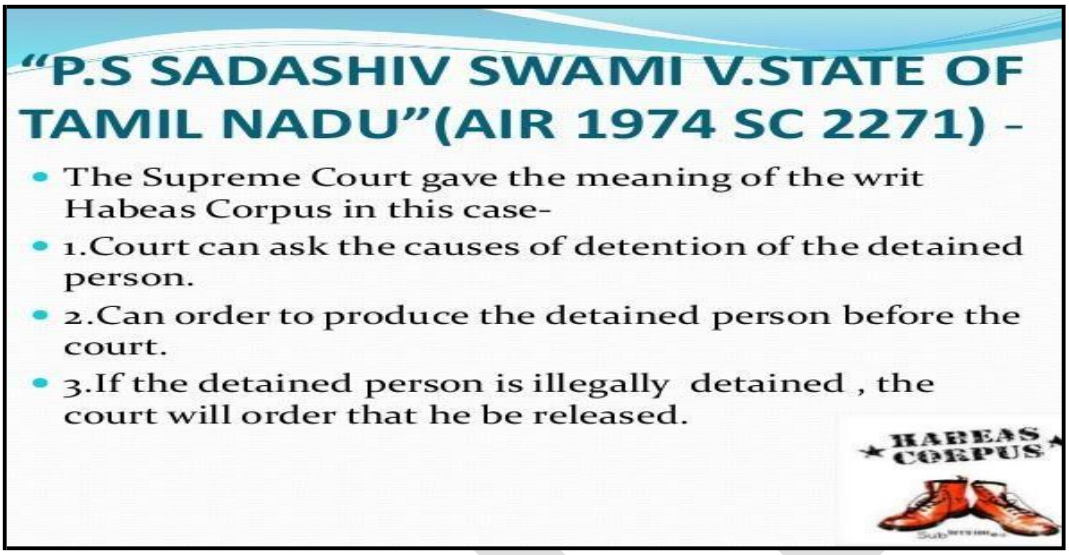
There are five types of writs –Habeas corpus , Quo warraranto , Mandamus , Certiorari and Prohibition



1. Habeas Corpus:

The latin term habeas corpus means 'you must have the body ' and a writ for securing the liberty was called habeas corpus ad subjiciendum. By this writ the court directs the person or authority who has detained another person to bring the body of the prisoner before the court so as to enable the court to decide the validity , jurisdiction or justification for such detention. The principal aim of the writ is to ensure swift judicial review of alleged unlawful detention on liberty or freedom of the prisoner or detention . The great value of the writ is that it enables immediate determination of the right of a person as to his freedom. Under Art. 22 , a person arrested is required to be produced before a magistrate within 24 hours of his arrest , and failure to do so would entitle the arrested person to be released .Habeas corpus cannot be granted where a person has been committed to custody under an order from a competent court when prima facie the order does not appear to be without jurisidiction or wholly illegal . Writ of habeas corpus can be invoked not only against the state but also against any individual who is holding any person in unlawful custody or detention . In such circumstances it is the duty of the police to make necessary efforts to see tht the detention is got released but , if despite such efforts , if a person is not found , the police cannot be put under undue pressure to do impossible.

In Gopalan v.Government of India, the Supreme court ruled that the earliest date with reference to which the legality of detention may be examined is the date on which the application for the same is made to the court.



2. Quo Warranto:

The term quowarrantomeans what is your authority . The writ of quo warranto is used to judicially control executive action in the matter of making appointments to public offices under relevant statutory provisions . The writ is also used to protect a citizen from the holder of a public office to which he has no right . The writ calls upon the holder of a public office to show to the court under what authority he is holding the office in question . If he is not entitled to the office , the court may restrain him from acting in the office and may also declare the office to be vacant . The writ proceedings not only give a weapon to control the executive from making appointments to public office against law but also tend to protect the public from being deprived of public office to which it has a right.

Quo warranto prevents illegal usurpation of public office by an individual . the necessary ingredients to be satisfied by the court before issuing a writ is that the office in question must be public , created by the constitution or a law and the person holding the office is not legally qualified to hold the office in clear infringements of provisions of the constitution or the law . It is the person against whom writ of quo warranto is directed , who is required to show by what authority the person is entitled to hold the office . While issuing such a writ , the High court merely makes a public declaration of the illegality of the appointment and will not consider other factors , which may be relevant for issuance of a writ of certiorari.

3. Mandamus

Mandamusis a command issued by a court to an authority directing it to perform a public duty imposed upon it by law . For example , when a body omits to decide a matter which it is bound to decide , it can be commanded to decide the same.

Mandamus can be issued when the Government denies to itself a jurisdiction which it undoubtedly has under the law , or where an authority vested with a power improperly refuses to exercise it . The function of mandamus is to keep the public authorities within the limits of their jurisdiction while exercising public functions .Mandamus can be issued to any kind of authority in respect of any type of function – administrative , legislative , quasi-judicial , judicial Mandamus is used to enforce the performance of public duties by public authorities .Mandamus is not issued when Government is under no duty under the law . When an authority fails in its legal duty to implement an order of a tribunal, mandamus can be issued directing the authority to do so . Thus , when the appellate transport tribunal accepted the applications of the petitioner for grant of permits, mandamus was issued to the concerned authority to issue the permits to the petitioner in terms or the tribunal order .Mandamus is issued to enforce a mandatory duty which may not necessarily be a statutory duty.

In Bombay municipality v. Advance Builders, the court directed the municipality to implement a planning scheme which was prepared by it and approved by the Government under the relevant statute but on which no action was taken for a considerable time.

"MANI SHOBHREJ JAIN V. STATE OF HARYANA" [(1977)1 SCC 486]-

- Requirement of mandamus writ are described in this case.According to it,following condition for issue of mandamus are required to be fulfilled-
- Existence of legal right,
- Such legal right shall be enforceable by court,
- The enforcement of such right imposes responsibility of performance of any duty over any person , public authority, corporation or government.
- Such duty is of public nature.



"GOVIND MENON V. UNION OF INDIA"(AIR 1967 SC 1893)

- It was held that prohibition writ may be issued under the followiing conditions-
- Where there is excess of jurisdiction.
- Where there is absence of jurisdiction.

4. Certiorari and Prohibition

These writs are designed to prevent the excess of power by public authorities . Formerly these writs were issued only to judicial and quasi-judicial bodies. Certiorari and Prohibition are regarded as general remedies for the judicial control of both quasi judicial and administrative decisions affecting rights.

'Certiorari'is a latin word being passive form of word "certiorari" meaning inform . A writ of certiorari or a writ in the nature of certiorari can only be issued by the Supreme court under Art. 32 and a High court under Art. 226 to direct , inferior courts , tribunals or authorities to transmit to the court the record of proceedings disposed of or pending therein for scrutiny , and , if necessary , for quashing the same . But a writ of certiorari can never be issued to call for the record or papers and proceedings of an Act or Ordinance and for quashing such an Act or Ordinance.

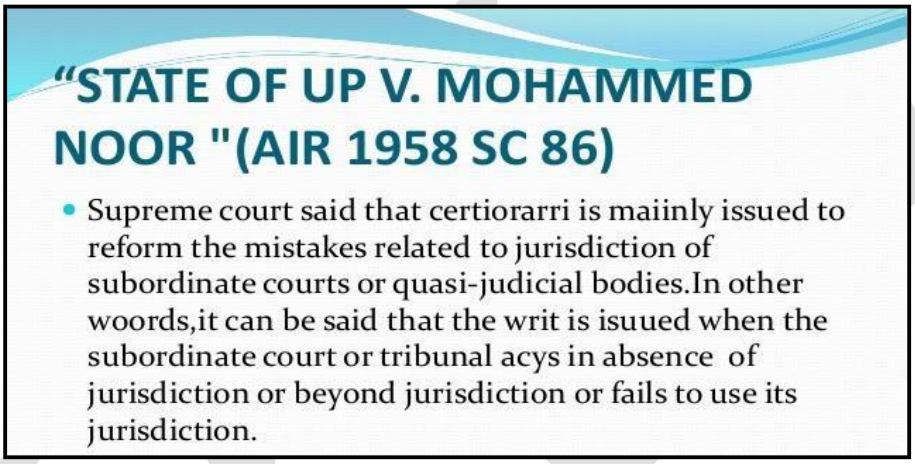
Certiorari under Art. 226 is issued for correcting gross error of jurisdiction i.e. when a subordinate court is found to have acted (1) without jurisdiction or by assuming jurisdiction where there exists none , or (2) in excess of its jurisdiction by over stepping or crossing the limits of jurisdiction or (3) acting in flagrant disregard of law or rules of procedure or acting in violation of principles of natural justice where there is no procedure specified and thereby occasioning failure of justice.

A writ of prohibition is normally issued when inferior court or tribunal (a) proceeds to act without jurisdiction or in excess of jurisdiction (b) proceeds to act in violation of rules of natural justice or (c) proceeds to act under a law which is itself ultra vires or unconstitutional or (d) proceeds to act in contravention of fundamental rights.

There is a fundamental distinction between writs of prohibition and certiorari. They are issued at different stages of proceedings . When an inferior court takes up a hearing for a matter over which it has no jurisdiction , the person against whom hearing is taken can move the superior court for writ of prohibition on which order would be issued forbidding the inferior court from continuing the proceedings . on the other hand if the court hears the matter and gives the decision

, the party would need to move to superior court to quash the decision / order on the ground of want of jurisdiction.

These writs are issued on the following grounds : when the authority is acting or has acted under an invalid law; jurisdictional error; error apparent on the face of record ; findings of fact not supported by the evidence ; failure of natural justice.



Conclusion:

These are the five types of writs which were issued by the Supreme court and High court under Arts. 32 and 226 of the constitution .Habeas corpus and Quo warranto being confined to specific situations, Certiorari and Mandamus are the two most commonly sought writs to control the actions of administrative bodies.

Q. Write a short notes on Fundamental duties of the citizens.

The Fundamental Duties are a novel feature of the Indian Constitution in recent times. Originally, the Constitution of India did not contain these duties. The Forty Second Constitution Amendment Act, 1976 has incorporated ten Fundamental Duties in Article 51(A) of the

constitution of India. The Eighty-Six Constitution Amendment Act, 2002 has added one more Fundamental Duty in Article 51(A) of the constitution of India. As a result, there are now 11 Fundamental Duties of the citizen of India.

The following are the Eleven Fundamental Duties of every citizen of India:

- To abide by the Constitution and respect the National Flag and the National Anthem;
- to cherish and follow the noble ideals which inspired our national struggle for freedom;
- to uphold and protect the sovereignty, unity and integrity of India;
- to defend the country and render national service when called upon to do so;
- to promote harmony and the spirit of common brotherhood amongst all people of India transcending religious, linguistic and regional or sectional diversities and to renounce practices derogatory to the dignity of women;
- to value and preserve the rich heritage of our composite culture;
- to protect and improve the natural environment including forests, lakes, rivers and wild life and to have compassion for living creatures;
- to develop the scientific temper, humanism and the spirit of inquiry and reform;
- to safeguard public property and to abjure violence;
- to strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of Endeavour and achievement."
- to provide opportunities for education by the parent the guardian, to his child, or a ward between the age of 6-14 years as the case may be.

An analysis of the above duties reveals that they are applicable only to citizens and not to the aliens. It is expected that a citizen of India. While enjoying fundamental rights, should also perform these duties. Although there is no provision in the constitution for direct enforcement of any of these duties, yet the courts are guided by these duties while interpreting various laws. These duties have Sanctity as these are included in the Directive Principles of State policy.